

Ezra The Ideological Leader

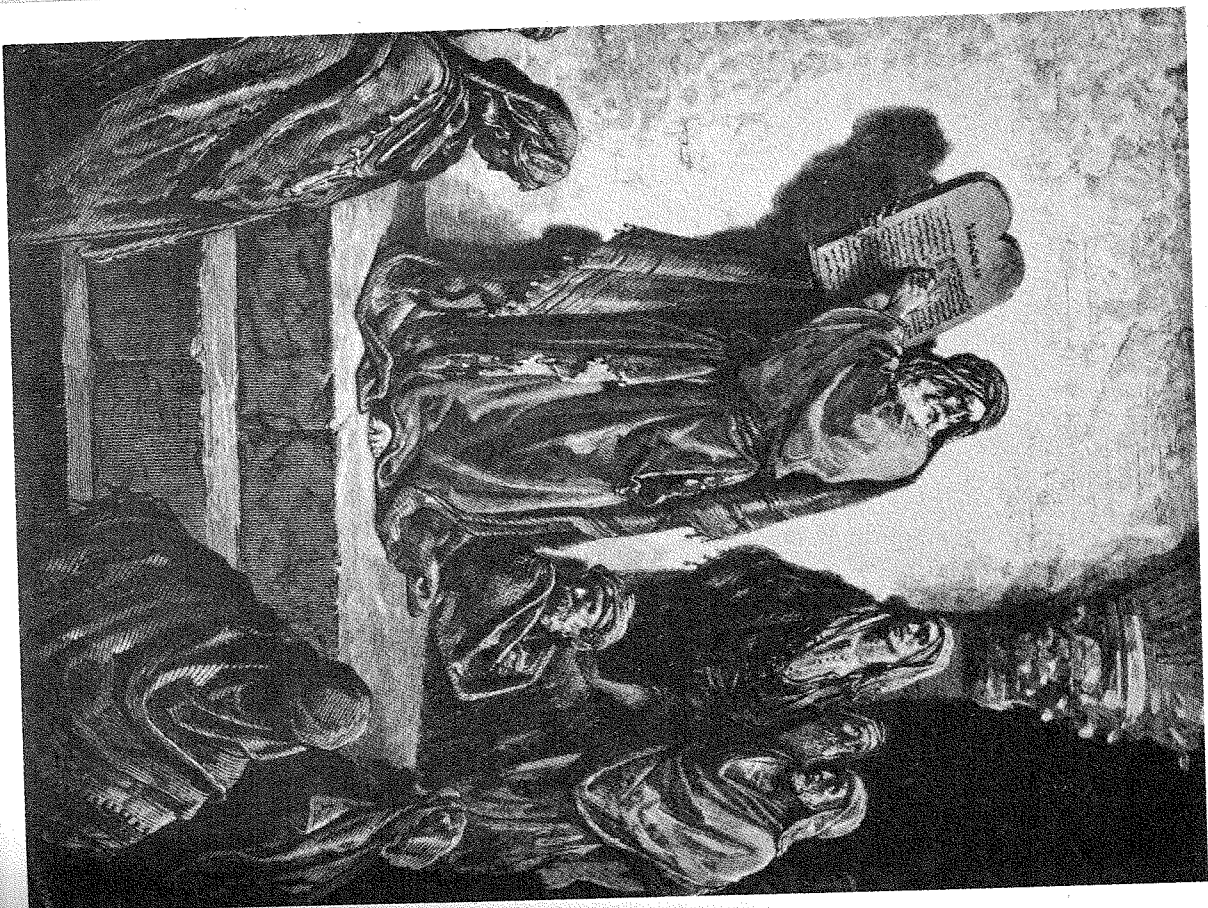
THE PERIOD that opens the Second Temple era is fairly well documented. There are still many gaps in our knowledge, as there are in all the accounts of ancient times, but we are given far more information regarding the first fifty years or so of this period than for the two hundred years following.

Such documentation as we have regarding the beginning of the Second Temple era is to be found in the books of Ezra and Nehemiah, which are fairly straightforward accounts, and in the later prophets: Haggai, Zechariah, and Malachi. These biblical chronicles present such a clear picture of the historical processes of the period that one is able to separate and define three separate waves of immigration and reconstruction.

The first wave of immigration was that immediately following the proclamation of Cyrus, King of Persia, permitting

Book of Ezra; Book of Nehemiah.

Ezra Reading the Law in the Hearing of the People. Gustave Doré



the Jews to return to Jerusalem. This group of immigrants was led by Sheshbazzar, a prince of Judah, probably one of King Yochin's progeny; by Joshua, the high priest; and by Zerubabel, son of Shealtiel. We have no idea of the exact relations between these men, and it would prove valuable if we could somehow probe them. Be that as it may, the fact is that there was a first *aliya*, a spontaneous going up to the Land of Israel. We have many details of this first *aliya*, such as the number of holy vessels, even the number of pack animals brought by the immigrants (Ezra 2:66-67), and the way they began to rebuild the destroyed Temple (2-3) and Jerusalem.

The new immigrants suffered many vicissitudes as a result both of internal problems and disputes and also of external pressures. These pressures were not the product of any well-defined political design. The neighboring peoples were themselves not yet national entities; they were rather ethnic groups or communities—some of quite ancient origin, like the Ammonites; others just beginning to take shape, like the Samaritans. All seem to have resented the intrusion of the returning Jews who were clearly out to re-establish their own state, while the problems of the new Jewish community were made even more difficult by the fact that they themselves were far from being a single ethnic group.

Yet another problematic factor was the imperial policies of the central government in Persia which were subject to frequent changes. The biblical account records its contradictory instructions: to build the Temple, not to build the Temple. This mixed message inevitably had a disturbing effect on the newly established community; and, according to the evidence of the later prophets Haggai, Zechariah, and Malachi, it was in every way a period of considerable instability and uncertainty.

The second wave of immigration was smaller than the first but carried considerably more weight. Led by Ezra, the scribe, this group, composed of idealists and intellectuals, was more conscious of its task, better equipped, and backed by the central government. Thus it could function without the restrictions that applied to a Jewish province within an imperial administration.

The third wave of *aliya* followed not many years later with Nehemiah. This group was also small, mostly workers and military men, and had the personal support of the king so that it was able to settle certain acute problems of the new community.

These three waves of immigration formed the basis for the resettlement of the Land, although there was a continuous influx for many generations thereafter. They established the fundamental pattern of life in the times of the Second Temple, and all that followed was a variation on a more or less fixed theme.

As I have said, the "first" *aliya* was led by Sheshbazzar, by Joshua, the high priest, and by Zerubbabel, with the spiritual guidance of the prophets Haggai, Zechariah, and Malachi. Haggai and Zechariah are mentioned several times in the Book of Ezra, but Malachi is a more obscure figure whose name may have been no more than a sobriquet. In any case, it is certain that the first immigrants were full of naïve enthusiasm: they felt they were returning home. Most of them had a specific connection with the Land, whether it was to ancestral estates or to hereditary tasks in the Holy Temple. The pioneers clearly had no idea of the problems awaiting them and were probably overwhelmed by the sheer magnitude of the unanticipated difficulties. At the same time, the support they had expected to receive from their brethren in the country and outside was

not forthcoming to any significant degree. They were thus immediately confronted by oppressive economic difficulties, because of both inadequate planning and general bungling as well as a lack of work and money. Moreover, the repeated occupation of the Land by neighboring peoples, although it never reached a stage of open warfare, was an everpresent source of anxiety and tension.

The functionaries of the central government, even though they remained officially neutral, were also unfriendly. The immigrants' task clearly demanded considerable labor and patience, but their response to the situation was generally ambivalent. On the one hand, there was a genuine feeling of joy at being able to realize the hope of rebuilding the cities and the destroyed Temple. On the other hand, there were many voices raised in complaint and protest about the wretched way things were being done. Confusion and sadness seems to have been the lot of these first settlers, and they often needed to be spurred on and encouraged by their leaders.

In many ways, the arrival of Nehemiah was crucial. Not only was he a man of great spiritual and intellectual powers, but he was also a brilliant man of action. True, his spiritual ideas did not show any real originality, but he knew how to get things done.

In contrast, Ezra, the scribe and priest, came to the country armed with considerable formal powers from the king and with a great deal of political assistance, but was not able to cope with the practical difficulties that faced him. An officially signed letter from the king was enormously effective in the Persian empire—as we also know from the Book of Esther. A document of this kind gave Ezra the authority to do whatever he wished in order to restore the ritual at the Temple in Jerusalem; he also enjoyed economic support from the govern-

ment and wide powers to punish—by fine, flogging, or death—anyone who did not comply with his wishes. Yet it seems that Ezra had neither the will nor the strength to use this authority, preferring rather to achieve his goals by other means.

Nehemiah, on the other hand, who came with much less clearly defined official sanction, was possessed of keen political knowledge and understanding. He had been personally close to the king and, if necessary, could approach him over the heads of all the officials and governors. Even if he lacked Ezra's legal authority, Nehemiah knew how to maneuver tactically. He even formed a small private army.

One of the situations recounted in the Bible which rather neatly delineates the contrast between the two leaders is their reaction to internarrative with, and participation in the abominable practices of, Canaanites, Hittites, Ammonites, and other local peoples. When Ezra learned of the "offense of these exiles," he said: "I rent my garment and my mantle, and plucked off the hair of my head and of my beard, and sat down appalled" (Ezra 9:3). Nehemiah learned of it in another context and noted, "I contended with them, and cursed them, and smote certain of them and plucked off their hair" (Nehemiah 13:25). In other words, Ezra was appalled and plucked out his own hair, while Nehemiah was angry and tore out the hair of the offenders. At least in immediate terms, Nehemiah's tactics appear to have been more effective. He succeeded in rebuilding the walls of Jerusalem and in putting the community on a sound social and economic footing. In any case, he helped to make it possible for the new Jewish state to withstand the pressures of its enemies and to grow into a significant spiritual and political entity.

In this respect, we have a fairly precise picture of Nehemiah

and his achievements. The essence of Ezra's personality and the specific quality of the second *aliya*, which he led, are far less obvious. Only a careful scrutiny can help us to see their historic importance, despite the failure to solve certain basic problems without the assistance of Nehemiah.

Composed of individuals who had volunteered to go up to the Land for clear ideological reasons, this *aliya* was undertaken by a different type of pioneer. Ezra himself did not come to Zion to be a political authority figure; he came to build an exemplary nation on the basis of a definite model. In many respects, his approach was modern. It was the forerunner of the motive force behind almost all the later historic migrations of peoples hoping to improve their political and religious lot. The saga of the ship *Mayflower*, with its significance for the whole later development of the United States, is only one example. What is interesting is the similarity of the problems of peoples who migrated with such an urge, and the way they formed clusters of settlement unified by commitment to definite ideological concepts. The only difference is that the *aliya* of Ezra preceded similar movements by about two thousand years.

On the same basis, one may view the covenant of Nehemiah (Nehemiah 9-10) as the first constitution in history. Composed in accordance with his political and religious policy, it is the archetype of the modern legal constitution pertaining in most states: that is, it contains a lengthy preamble presenting the history of the nation, its origins, and its aspirations (in this case, to restore statehood in accordance with the spirit of Judaism), followed by a detailed listing of basic laws, ordinances, and regulations required to give the covenant executive power. In addition to the Torah, which was defined as the accepted basic law, there was a sequence of social and economic legislation

appropriate to the time and, only thereafter, a list of important persons setting their seals in the name of the people. Among the signers were representatives of the large families and recognized leaders like Ezra and Nehemiah. By setting their seals to what was called the *amana*, the "covenant," they pledged themselves to the first written constitution in history, the beginning of the modern concept of law as a mutual agreement among free men.

It may therefore be inferred that Ezra endeavored to accomplish something unprecedented. He and his companions strove for something that went beyond the physical restitution of the state. Coming as Ezra, the priest and scribe charged with the task of reconstituting the Law of the Torah in the Land, he saw himself as a teacher and guide, an ideological leader. This ideological factor was indeed paramount in all his actions and complemented his singular personality. When the king offered to provide him with a private guard, he refused on the grounds that, as a person who claimed to receive divine help, he felt it would be ridiculous to rely on a body of soldiers for protection—and this in spite of the fact that he was not a little frightened.

Ezra was quite aware of the need for other methods besides the ideologically inspired ones. He knew he could not force a value system upon the unwilling. Consequently, he tried to bring people to the desired point of acceptance of their own free will. This inevitably led to difficulties and opposition from all directions; and, at least at the first stage, much of what he attempted to do showed few results, if any.

Although the people of his *aliya* almost certainly agreed with Ezra's politico-religious approach, and although he had brought with him a large contingent of Levites and others intended to be teachers of the Torah, there was no denying the

Biblical Images

fact that most of the Jews in the country had become secularized, tired, and apathetic. He realized that he would have to change this situation, and not by official decree alone but by persuasion and by personal example—by spiritual action as well as by teaching.

Ezra therefore called for fasts and for public demonstrations of solidarity and penitence. He felt that the coercive powers vested in him by virtue of his royal powers were not suited to his aim. He wished to bring about an ideological transformation in the people. This was a change that required time, and it took many years for some of Ezra's statutes to become an intrinsic part of the life of the Land. Tradition has it that Ezra instituted ten ordinances, each one of them intended to introduce spiritual force and outlook into existing social and political values, great and small.

Nehemiah was the practical man of action, but it was Ezra who was undoubtedly the one who laid the grand pattern of restoration. By giving new content to old forms, Ezra's achievement was such that the sages said: if the Torah had not been given by Moses it would have to have been given by Ezra. In a sense, the achievement of Ezra is parallel to that of Moses: while Ezra did not mold the people into a nation, he did, nonetheless, effect in them a profound transformation. The Jews ceased to be a rather ordinary political entity and became a people who expressed and manifested the spirit of Torah. It may be said that the Torah was received again through Ezra, less dramatically than on Sinai, but no less significantly for all that.

An Overview/ Ezra – Molder of a New Era

ראוי היה עזרא שתתן תורה על ידו לישראל
אלמלא קודמו משה.

*Ezra was worthy for the Torah to have been
given to Israel through him, had Moses not
preceded him (Sanhedrin 21b).*

למה נקרא שכן אנשי בנות המדבריה שהיו
עטרה ליושנה.

*Why were they called 'Men of the Great
Assembly'? Because they returned [God's]
crown as it was of old (Yoma 69b).*

קדושה ראשונה קדושה לשעמה ולא קדושה
לעתיד לבא כיון שעלה בני המדבריה והיוהו במקצת
האריך קדושה קדושה שניה העמדת לעולם.

*The first holiness [i.e., the sanctification of
the land pronounced by Joshua] sanctified
it only for that time [when Israel was
sovereign over Eretz Yisrael] but did not
sanctify it for all time. When the people of
the exile ascended and took possession of
some of the land, they gave it a second
holiness that endures forever (Rambam,
Hil. Terumos 1:5).*

I. A Mire of Complexity

The Book of Ezra takes place in a period of Divine
aloofness, as it were. It begins during the
seventy-year exile following the Destruction of the
First Temple [3338-3408/422-352 B.C.E.]. The
Books of Daniel and Esther tell of events that took
place during the same period, and so do much of
Yechezkel, Jeremiah, Zechariah, and Malachi, not to

orgiastic celebration of what he calculated to be the dashing of the hope that Jerusalem would ever be rebuilt (see ArtScroll *Esther* and Overview).

Everywhere the scattered, powerless Jewish people saw their glorious past ebbing away and no future coming to replace it.

The *Book of Ezra* brings us to a pivotal turning point in Jewish history. It begins an epoch that is still with us, because the glories of David and Solomon were never regained, even after the Second Temple was built. There was a change in God's manner of communicating with Israel and in the leadership of the people. Just as significant, there was a change in God's manner of punishing evil and in bestowing His kindness upon the world. This too has not changed appreciably with the passage of centuries.

Let us, therefore, begin to search amid the mists of a difficult period. If we find shafts of light and follow them, we can achieve insights not only into Ezra's time, but our own as well.

II. When Certainty is Lacking

The Need for Faith

Man craves for certainty. There are few things more perplexing than the confusion of haphazard events that tumble forth without an apparent plan. Even bad news doesn't seem quite so tragic if we understand it as part of a meaningful pattern. The Torah and Talmud tell us that good is rewarded and evil punished. If so, the person who wakes up in the morning, prays devoutly, thanks God for his life, health and nourishment, and leaves for his workplace determined to deal ethically with his associates and honestly with his customers should flourish that day. Conversely, the person whose day rests on self-indulgence and double-dealing should be struck with pain and failure. Needless to say, experience does not confirm these expectations.

The truth is that were such certainty to exist, it would virtually remove the challenges of life.

History has taught us that exile is followed by redemption, but in those times, many people wondered if a rebirth was possible.

mention the lamentations of *Eichah*. With hindsight of our knowledge that the exile *did* come to an end and the Temple *was* rebuilt, we cannot even begin to imagine the degree of doubt and despair that permeated Israel during that time. History has taught us that exile is followed by redemption, but in those times, many people wondered if a rebirth was possible.

They knew that the holiness of Eretz Yisrael such that commandments performed on its soil are a higher qualitative order than those performed anywhere else. They knew that God directs the flow of His blessing to Israel and from there it emanates the rest of the world (*Ramban, Leviticus* 18:25, also to *Genesis* 33:20). They knew that compared to someone living in Eretz Yisrael, a person living other lands is like someone who has no God (*Kesubos* 110b). If so, did not the exile mean that God had rejected His people and no longer wanted their service? Why else would He expel them from the source of holiness on earth?

So it was that a group of elders came to Ezekiel and asked whether they, as a nation driven by God from His land, had any more obligation to pay continued allegiance to its 'former' Master than did a divorced woman expelled from the home of her husband or a freed slave sent away from the home of his owner (*Sanhedrin* 105a; see also ArtScroll *Yechezkel*, 20).

In Babylonia, Daniel and the brightest and best of Jerusalem's youth were serving as courtiers to Nebuchadnezzar, the destroyer of the Temple.

In Babylonia, Daniel and the brightest and best of Jerusalem's youth were serving as courtiers to Nebuchadnezzar, the destroyer of the Temple, and his successors. There, they were subjected to a combination of blandishment and persecution designed to wean them from their religion.

At least in Babylonia, the intensive study of Torah was beginning to strike roots, but Torah was not being taught extensively in Elam. Daniel, along with Mordechai, another of those erstwhile Jewish exiles, had been taken to Elam, and there Shushan, lavish royal capital, was built. There, the Jewish community took part in Ahasuerus' blasphemous

The commentators explain that God cannot properly reward good deeds unless the doer had overcome a temptation not to do good, and He cannot punish the performance of evil deeds unless the perpetrator could have been expected to know better. In other words, man must face a roughly equal challenge whether to be a saint or sinner; truth cannot be too obvious nor can falsehood be too enticing. Only in a balanced situation can one who sins be held to account for not having overcome the lure of his senses, and one who is virtuous be commended for letting his intelligence overcome desire.

Thus, intelligent people can differ sharply on how to interpret the same evidence. Some say that the complex structure of the universe dictates that there must be a Creator; others, not as willing to see the truth, argue that man's knowledge and nature's predictability remove the need for supernatural answers. To turn to a more pragmatic example, rational people are willing to deny themselves luxuries and even simple comforts in order to put away savings for the future, for children, or for worthy causes, while other rational people insist that life should be lived to the hilt, and pleasures enjoyed while one is alive and healthy.

It is interesting that cultured people during most of history opted for the former course, that of denying themselves today in order to have more for tomorrow. This attitude is essential to the service of God, as well, because the Torah expects us to view this world as a means to prepare for a better one. Faith in a World to Come and willingness to endure privation here to accumulate good deeds that will be rewarded there are virtual prerequisites for a life of Torah observance. Conversely, the trend in contemporary society toward instant gratification at the expense of investment for a material future has its echo in an unwillingness to sacrifice for the sake of future spiritual benefits.

That history seems to record an overwhelming majority of cases when people elected not to hear

The concept of reward and punishment is a principle of faith, not of statistical certainty.

Rational human beings tend to do what is demonstrably successful and shun actions that bring distress. They do so in their personal and professional lives, and they would in their spiritual lives as well, if they could be sure. If lightning struck sinners, only fools would sin. But, as we all know, the concept of reward and punishment is a principle of faith, not of statistical certainty. When the final page is turned on the world's current state of existence and man enters the ultimate epoch of redemption and a higher spiritual life, we will see and understand how everything led toward God's ultimate goal of perfection. Then, the reward for good, the punishment for evil, and all the steps in between will be seen to have played a role in arriving at the final destiny of the universe.

When the play is complete, all its actors will recognize how their respective, seemingly unrelated, roles helped produce God's masterpiece, much as a complex machine may be composed of commodities, labor, and ingenuity from all corners of the globe. The miner in South Africa, the sailor on the Pacific, the analyst in Massachusetts, the oil rigger in Alaska, the copper refiner in Chile, and the blast-furnace operator in Pittsburgh would all feel better about the sweat, pain, and frustration that accompany their rigorous occupations if they could see and enjoy the complex and magnificent machine their labor made possible. Pointless labor is drudgery; collaboration in accomplishment is exhilarating.

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Two Sides

The eleventh of Maimonides' Thirteen Principles of Faith is:

אני מאמין באמתה שלמה וקדושה ונצחית. ונאמ'ר טוב לשמור מצוותי ומצוותיך. I believe with complete faith that the Creator, Blessed is His Name, rewards with good those who observe His commandments, and punishes those who violate His commandments (Daily Siddur, based on Rambam, Comm. to Mishnah Sanhedrin ch. 10).

III. The Attribute of Justice*

The Book of Judges
A bulwark of Creation is the concept of **מִשְׁפָּט**, *Divine Justice*. In its simplest terms, this would

God waits. Reward and punishment will come, but the intervals will be long enough to permit the basically righteous to perceive the truth, and the basically evil to deny it. Such a period was the long one described in the *Book of Judges*. When the people succumbed to the lures of idol worship, their strength slowly ebbed and they fell under foreign domination. When they heeded the call of a

righteous leader, miracles happened and God helped them once again, whereupon the chapter would conclude with a statement like אַרְבָּעִים אָרָץ הָיְתָה שָׁלוֹם וְהַלְלוּ אֶת ה' וְהָאֲדָמָה הָיְתָה שָׁלוֹם וְשָׁקֵט וְשָׁלוֹם (Judges 3:11, 5:31, 8:28; cf. 3:30).

None of this happened overnight. It was a process that took years. When the cycle was complete, the victims-turned-victors paused and drew their lessons. The teachings of Moses and Joshua had been relearned and reinforced. The repentance lasted and the land was tranquil and free for forty years or more. Then, new generations that had not lived through the earlier experience, or perhaps were too young to fully absorb the lesson, reverted to the failings of their forefathers. They failed to learn from history, so they repeated it.

A cycle of reward and punishment is a theme of the Book of Judges.

A cycle of reward and punishment is a theme of the *Book of Judges*. From the vantage point of history, we wonder why the people didn't realize the consequences of their misdeeds before tragedy overtook them. But we have 'superior knowledge' of their period only because the *Book of Judges*

God's voice and see His hand is dismaying but should not be surprising. As Rambam points out in his *Guide for the Perplexed*, man is more attracted to the tangible than to the abstract. For man to deny the cravings of his animal nature in favor of the urgings of his soul is no simple task. It demands faith, will, and discipline, and for all but the most superior people, it requires the buttress of a strong social order. Not surprisingly, therefore, Jewish religious observance has been strongest when the community structure has been sound and leadership strong.

During World War I, the path of battling armies cut across much of Poland and Lithuania, causing the flight of hundreds of thousands of Jews, including much of the rabbinate and community leadership. Orthodox life had been under siege before the war, but it had tenaciously fought back and held its own. The ravages of the war left a vacuum where existing community structures were destroyed. The forces of assimilation, Bolshevism, Socialism, secularism, and whatnot gobbled up major chunks of power. When the War ended, it was impossible in many communities to reestablish the pre-War social order. In a spiritual sense, the Holocaust began on Tishah B'Av of 1914, when World War I broke out.

The Jewish immigration to the United States and other lands of the free world resulted in a horrendous degree of assimilation in great measure because observant, powerful community organizations did not exist and the prevailing cultures of religious tolerance and freedom made it almost impossible to build them from scratch.

This is an interesting parallel to the situation facing Ezra and his colleagues when they had to reconstruct a Jewish society that had been ravaged by destruction and dispersion.

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the people who live there and congratulate ourselves on our good luck or good sense in being elsewhere. It is sad but true that we are astounded at the errors of the people of Scriptural times, but we are equally oblivious to blindness of contemporary times. At least Isaiah and Jeremiah were taken seriously enough to be scorned and threatened as enemies of the established order; in modern times, those who attempt to put natural calamities in the context of spiritual failures are not even rewarded for their pains with a chuckle.

A New Form of Judgment

The result of continued extermination of evil would be to decimate the world. This was not God's plan.

There are times when God deems it necessary to revise the function of Justice. Let us understand that, in essence, Judgment is a form of Mercy because, eventually, it removes evil and allows good to prevail. When His rod inflicts pain, it is because His mercy means to restrain man from his destructive path of evil-doing. Whenever possible, God punishes gently, lovingly. However, at times when man has earned more wrath than he can endure, God withholds His rod. For if man overwhelmingly chooses evil over a long period of time and even refuses to heed the signals of Divine punishment, God's exercise of Justice would cause unlimited destruction. The result of continued extermination of evil would be to decimate the world. This was not God's plan.

It is not surprising, therefore, that the classic exercise of Judgment must be suspended in an intellectual climate that would continue to ignore its lessons. Nevertheless, despite periods of despair and spiritual degradation, God guides history to the outcome He ordained at Creation. Man's good can hasten the favorable outcome and reduce the unpleasantness along the way; his lack of goodness can make life unpleasant indeed, as history consistently reminds those who care to listen. But throughout, God's underlying desire is to shower His gifts upon man.

In his classic Kabbalistic mussar work *Tomer*

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compresses over three hundred years of history into twenty-one chapters. The extraneous factors are omitted because the prophetic eye discerns them as insignificant to the topics at hand. But we can be sure that events overwhelmed the perceptions of people in those days just as they confuse us in our time. Similarly, when the history of our era finally lurches into Messianic times, a new history book will be written with Divine influence, a book that will outline the essential events of the long exile. Like the books of the Scriptures, it will show how the Divine scheme played itself out, what mattered and what didn't, and how virtue and sin fueled the engine of history. When the climax of history arrives, people will look back and wonder why the fools of yesteryear did not realize that the spiritual struggles of the Baal Shem Tov in Mezhibozh and the Gaon in Vilna were far more significant than the heroics of conquistadors in America and the revolutionaries at the Bastille.

It is too easy for people to rationalize events and interpret them to coincide with their own preconceived notions. According to one Midrashic interpretation, the people who built the Tower of Babel (see *Genesis* ch. 11) had the notion that they could somehow shore up the heavens to prevent another deluge. To us it seems preposterous that only some 350 years after Noah's flood, people could believe that it was a natural occurrence for the earth to be flooded by a cataclysm of sorts every 1656 years. Instead of heeding the eye-witness testimony of Noah and his children that the Flood was a Divine punishment, people said it was a natural, predictable, recurring phenomenon (*Bereishis Rabbah* 38:1; *Tanchuma, Noach*).

Incredibly irrational? No doubt, but are we more rational? The *Chofetz Chaim* used to insist that every natural calamity is a call and a warning to Israel to repent. To the *Chofetz Chaim*, no natural event could be assumed to be haphazard. Yet we read about volcanic eruptions, tidal waves, tornadoes, and prolonged droughts — and all we do is feel sorry for

The Chofetz Chaim used to insist that every natural calamity is a call and a warning to Israel to repent.

Unpleasant Results

When Justice functions normally the heavenly blessings flow uninterruptedly to earth.

There are major differences, however, whether the world functions according to pure justice or whether God's mercy dictates that He withhold punishment and provide undeserved goodness. In the original scheme of Creation, the heavenly bodies and designated angels serve as the conduits to bring blessing upon the earth. When Justice functions normally — that is, in the state of regularly rewarding good and punishing evil — the heavenly blessings flow uninterruptedly to earth. Vegetation flourishes, creatures are healthy, the earth is productive. But when excessive sin causes God to refrain from punishing man lest he be destroyed, the normal flow of blessing is also impeded. True, men will survive and be nourished, but the conduits of God's goodness become constricted. At a time when evildoers must be permitted undeserved survival and success, when brazenness becomes the norm and evil's power seems to wax unbridled, God blesses the world only grudgingly. There will be only limited prosperity, or perhaps some places will prosper while others go hungry. As the Talmud (*Sotah* 48b) expresses it, at such times fruit will lack the succulent taste it was meant to have. Perhaps the fact that some fruits seem not to grow as large as the Talmud's description of them — such as typical olives and eggs that, as described by the Talmud, seem to have been much larger than they are in modern times (*Noda B'Yehudah*) — may be explained as a by-product of the diminution of blessing.

There is a far more disturbing by-product of this Divine withdrawal from direct involvement in human affairs. The growing power of evil people causes revulsion and outrage. Not only their victims, but all decent people are offended by a lack of fairness. 'How can a just God allow this to happen?' they demand. And if He permits it — as we have heard heretics argue in this century — then perhaps God is not just, or is detached from human affairs, or lacks power, or does not exist.

This is known as *חורבן מלכות משיחית*, the *Attribute of*

The Jews worshipped calves, and God was merciful to them, but they did not repent. If so, why was He merciful?

Devorah (ch. 1), Rabbi Moshe Cordevero writes of God's attribute of patience: *לֹא יָצָא מִלִּפְנֵי ה', וְהוּא לֹא שָׁחַט אֶת יִשְׂרָאֵל עַד שֶׁיִּשְׁכַּח אֶת הַחֶסֶד* (Micah 7:18): *Who has not retained His wrath eternally* (Micah 7:18):

We find that in the time of Jeroboam ben Yoash God restored the boundary of Israel [i.e., Jeroboam reconquered the northern portion of *Eretz Yisrael* from Aram (*II Kings* 14:25)]. The Jews worshipped calves, and God was merciful to them, but they did not repent. If so, why was He merciful? Because of this very attribute that He does not retain His wrath eternally. To the contrary, He softens His wrath; even while the sin [that provoked Him] still exists He does not punish. He does not punish but waits and is merciful in the hope that they will repent... God conducts himself mildly or harshly, but all for the benefit of Israel.

God tempers His judgment according to man's ability to endure it. When the Russian Revolution took place in 1917 and the new government made peace with Germany, a wave of relief swept the country. Among the students of the *Chofetz Chaim*, who had fled from Poland to Russia with much of his yeshivah, there was a euphoric belief that permanent peace was at hand. The elderly sage addressed his students and told them that there would be no real peace until Messiah came. He was convinced, he explained, that the widespread suffering being endured by so many Jews were the birthpangs of the Messianic age. God would not have brought such suffering upon His people unless it was the start of the process that would lead to the final redemption. It is true, the *Chofetz Chaim* insisted, that there would be intermittent periods of peace and prosperity because human beings cannot bear unrelieved agony. Therefore, God in His mercy will give man respite to recover even if he does not repent. But if need be, wars and calamities will break out again until the climax of redemption finally arrives.

The growing power of evil people causes revulsion and outrage. Not only their victims, but all decent people are offended by a lack of fairness.

There would be intermittent periods of peace and prosperity because human beings cannot bear unrelieved agony.

So Jacob felt impaled by doubt and helplessness — and most of all by an impenetrable concealment of God's purpose.

Joseph was gone. Simon was gone. Jacob's land was gripped by famine. He was not receiving prophetic insight. If Jacob were to let Benjamin, too, be dragged down to Egypt at the whim of a heartless, suspicious overlord, the last remnant of Rachel might be lost forever. Perhaps the brotherly conspiracy that led to Joseph's 'death' was repeating itself again, with Benjamin its new victim. So Jacob felt impaled by doubt and helplessness — and most of all by an impenetrable concealment of God's purpose: 'וְכִתְּבָהּ דְּרַבִּי מֶהָ, מִי הָיָה חֲשֵׁמִי (Isaiah 40:27).

Can we blame him for his outburst? Surely not. But even then, when God's Judgment seemed least apparent, the future was taking shape unbeknownst to Jacob.

ר' לוי בשם ר' תנא בר חנינא: מעולם לא אמר נעקב אבינו דבר של בטלה אלא כאן. אמר דק"ה אני עוסק להמליך בנו במצרים, ודוא אומר, למה תרעתם לו?

R' Levi [said] in the name of R' Channa ben Chanina, 'Jacob never said anything pointless except here.' Said the Holy One, Blessed is He, 'I am engaged in making his son the ruler of Egypt, and he says, "Why did you treat me so ill?"' (Bereishis Rabbah 91:10).

Like an embryo forming in its mother's womb, the ingredients of a new future take shape behind events that seem incompatible with any higher purpose. So it was with Jacob. The destiny of Israel was being formed. Joseph in Egypt was preparing the crucible in which Israel's nationhood would be formed. While Jacob wondered why he was being tormented, God's pledge and prophecy to Abraham were moving toward fulfillment. Jacob's family was nearing the exile and subjugation of Egypt, from which they would explode in a blaze of miracles and the revelation at Sinai. Jacob's failure to perceive this is related not to degrade him but teach his offspring the eternal lesson that God's plan moves forward inexorably, whether or not its purpose is visible.

Jacob's family was nearing the exile and subjugation of Egypt, from which they would explode in a blaze of miracles and the revelation at Sinai.

It takes powerful faith to acknowledge that even in such times He is not unaware.

Beneath the Seeming Slumber

Harsh Judgment, for, indeed, the harshest judgment of all is when God's wisdom dictates that He withhold his guiding hand from the world to the point where good seems to go unrewarded and evil unrestrained. It takes powerful faith to acknowledge that even in such times, though God may seem to 'slumber,' as Scripture puts it, He is not unaware, and He will rouse Himself when the proper time comes.

There is another major principle in the understanding of history. God may seem to slumber and be detached, but He never abandons His master plan for Creation. Even when it seems to function independently of Him, He is renewing His Creation at every moment, injecting it with the goodness that will blossom into future fulfillment, not destruction. At such times, God may be so heavily concealed that even the very greatest people can fail to perceive Him.

In the 20-20 hindsight of history, can anyone deny the fact that God was preparing the succor while He was permitting Spain its temporary moment of ascension?

It has been noted that the day after the Jews were expelled from Spain, Columbus set sail to discover the hemisphere that was to become a major refuge and source of support for the Jewish people in the future. It took centuries before this connection became apparent, but in the 20-20 hindsight of history, can anyone deny the fact that God was preparing the succor while He was permitting Spain its temporary moment of ascension?

Only a generation after the expulsion, Spain's glow began to fade; it would never again be a significant factor in world history, but the descendants of the despised and tortured Jewish nation would follow in the wake of the explorer commissioned by Ferdinand and Isabella, the ruling couple of Spain.

When Jacob's sons came back from Egypt with the bitter news that Simon had been detained by the viceroy and that he would not be released until young Benjamin was brought to Egypt, Jacob exclaimed in despair, למה תרעתם לו, Why did you treat me so ill? (Genesis 43:6).

In the 20-20 hindsight of history, can anyone deny the fact that God was preparing the succor while He was permitting Spain its temporary moment of ascension?

understanding so clear that there are no difficulties for him. The struggling student memorizes individual facts, questions and answers; the sage knows broad principles. This clear knowledge, combined with an indefatigable intensity of study and single-minded desire to master every nuance of every law became the firm basis of an unbroken oral tradition that transmitted Moses' teachings intact from generation to generation with flawless accuracy.

This was a time when the only written Torah was the Five Books of the Chumash and the Scriptures. The entire Oral Torah remained oral. When difficult questions arose, they were decided by the Great Sanhedrin, whose authority was binding. The chain of tradition during those centuries of Jewish history was transmitted intact from teacher to student, generation after generation.

The blossoming of the Oral Law in all its intellectual brilliance and glory as we find it recorded in the Talmud and other books did not begin until the period of the Second Temple. But Heaven forbid that anyone suggest that the Rabbinic Era which began during the Second Commonwealth produced a new or reinterpreted Torah. During the entire period from the Giving of the Law at Sinai until the opening generations of the Second Commonwealth, the Oral Law was handed down intact and free of dispute. We find no record of halachic disagreement during the entire period. During the Second Commonwealth, however, the historic intensity of study began to decline ever so slightly, with the result that disputes began to arise among the Sages (*Sanhedrin* 88b; see *Rambam's Introduction to Mishnah*).

Only one halachic dispute arose during the first three centuries of the period, and an additional three disputes arose between Hillel and Shammai, but there are numerous disputes recorded among their students. In addition, during the long and cruel period of harsh Roman persecution, Torah study became virtually impossible except with the most extreme self-sacrifice. The result was a further tragic

So it was in the days of Ezra and his comrades. Let us attempt to make our way through the darkness that shrouded God's concern for His people and the plans that were taking shape.

IV. The Oral and Written Torah*

Implicit in the Torah

It is inconceivable for the Written Torah to stand on its own without the elucidations and interpretations that God taught Moses at Sinai.

The Torah has two parts, *תורה שכתב* ו*תורה שבעל פה*, the Written Torah and the Oral Torah. In terms of revelation and law, the two Torahs are complementary and inseparable. It is inconceivable for the Written Torah to stand on its own without the elucidations and interpretations that God taught Moses at Sinai. This has been amply explained in many sources. (See Overview to ArtScroll *Bereishis*, vol. I, part of which is excerpted below.)

Every original thought of every diligent student is a part of the Torah which Moses received at Sinai, and no matter how voluminous the library, its contents were part of the spiritual treasure transmitted to Israel through Moses. But this is not to say that Moses was drilled line by line in every part of Torah literature and thought. A human being makes scores of decisions every day; responsible people make more decisions of greater consequence. The choices are unconscious and obvious, according to the taste and mode of living each individual has developed. Everyone has a philosophy of life, a set of priorities, a scale of values. Most questions that arise during the day are answered intuitively because they fit into each individual's own personal pattern. It is only a rare problem that demands a thought-out response — that is the question that tests a person and demands his attention.

Moses was taught the unity of Torah, the essential principles and laws with a clarity that implicitly contained the response to every question.

Moses was taught the unity of Torah, the essential principles and laws with a clarity that implicitly contained the response to every question. The great sage can easily answer questions he has never heard because his knowledge is so thorough and his

*The following sections of the Overview are based on the teachings of Rabbi Gedalyah Schorr in *Ohr Gedalyahu*.

God, the heard and recorded prophecy. Like the Ten Commandments that were heard by all Israel amid a display of Divine power that left no doubt as to Who was their Giver, the rest of the Written Torah was and is accepted by Israel because of an unbreachable faith that it is God's word. The Oral Torah represents man's ability to understand God's teaching according to His transmitted clarifications and then to build upon these Divinely given principles to cope with cases and situations never anticipated by earlier generations.

The Written Torah represents revelation and clarity, while the Oral Torah represents murky areas where human wisdom must interpret the Torah.

In short, the Written Torah represents revelation and clarity, while the Oral Torah represents murky areas where human wisdom must interpret the Torah and apply it to current questions. In questions of halachah, for example, the Written Torah will tell us unambiguously that it is forbidden to kindle a flame on the Sabbath; the Oral Torah will clarify the underlying principles of this commandment and then go on to consider whether electricity is considered a flame.

When prophecy ceased to exist, it fell to the Sages to interpret events based on the lessons of the Torah.

In matters of interpreting history, the Written Torah and the prophets not only reported events but put them in perspective. They told Israel that a drought or a deluge was not a random event, but a sign or punishment. They proclaimed that a triumph was due not to numbers or military prowess, but to God's response to Israel's prayers or repentance. When there was no prophetic proclamation, or with the beginning of the Second Temple era, when prophecy ceased to exist, it fell to the Sages to interpret events based on the lessons of the Torah.

Why the Sages? Why not political, economic, military, medical experts? For this we must return to the basic premise that the universe and its history are reflections of the Torah and cogs in the mechanism of God's plan. If so, then it stands to reason that factual findings and educated opinions of the experts must be scrutinized under the lens of the Torah. Thus it was that in the chaotic, unclear circumstances that prevailed as the Babylonian Exile ended and Jews again were permitted to return to

Ways had to be employed to regain what was being lost. These ways were not new.

decline in knowledge and an impairment in the transmission of the oral tradition. Without the totally reliable teacher-to-teacher chain of Oral Law, ways had to be employed to regain what was being lost.

These ways were not new. The principles of Biblical interpretation were taught to Moses at Sinai together with the rest of the Oral Law. They are the **בְּרִייתֵינוּ מִפִּי מֹשֶׁה וְהַכֹּהֲנִים**, the Thirteen Hermeneutic Principles through which the Torah is interpreted (*Sifra*). The Talmud makes extensive use of these principles; in fact, they form its heart. Through their use, it was possible to rediscover laws from the oral tradition which had become forgotten or confused.

Following the death of Moses, a substantial body of orally transmitted law was forgotten as a result of the people's grief over the loss of their teacher. The leader and sage Asniel applied the principles of Biblical exegesis and restored the lost knowledge to Israel. How did he do it? Asniel made use of established exegetical principles to regain the halachic knowledge that had been forgotten (*Temurah* 16a).

They took the eternal tools of exegesis and used them to reveal the secrets that had always been locked within the words of the Torah.

During the Mishnaic and Talmudic periods, the Sages of Israel employed the same devices. They took the eternal tools of exegesis and used them to reveal the secrets that had always been locked within the words of the Torah, secrets that Moses had taught Israel and that, in turn, had been transmitted orally for over a thousand years until the oral tradition began to crumble due to outside persecution and a lack of diligence. They did nothing new and certainly made no changes in the Torah; they merely made use of hermeneutic principles that had not been needed while the tradition of study was still at its zenith.

Man's Potential

There is another dimension of the difference between the Written Torah and the Oral Torah that conditions our outlook on all aspects of life. The Written Torah represents the open, revealed word of

God-given principles contain the messages needed for all conditions, but do not change their essence to accommodate changing mores and preferences.

means *planted*. How does one 'plant' something that cannot grow? The answer is simple: when we seek to foster the growth of Torah wisdom, we must begin with the premise that our knowledge is based on convictions that are as unyielding as a *well-driven nail*. Man can and must expound the Torah and broaden his understanding of it, but he can do so only if he builds upon God-given principles that contain the messages needed for all conditions and generations, but that do not change their essence to accommodate the changing mores and preferences of opinions and desires. Properly understood, however, the words of Torah indeed thrive and flourish like well-tended saplings.

From One Shepherd The verse concludes *וְהָיָה כְּעֵץ אֲשֶׁר יִצְטָק* [the words of the wise are sayings of] *the masters of collections, coming from one Shepherd*. The Talmud (ibid.) explains that though the Oral Torah is a collection of the teachings of many Sages who may often disagree with one another, they nevertheless all derive from one Shepherd:

These are disciples of the wise who sit in manifold assemblies and occupy themselves with the Torah, some pronouncing 'clean,' some pronouncing 'unclean,' some prohibiting and some permitting ... Should a man say: How [in view of the contradictory opinions held by scholars] shall I learn Torah? — The verse therefore concludes: וְהָיָה כְּעֵץ אֲשֶׁר יִצְטָק, coming from one Shepherd: One God gave them [i.e., all the various opinions do not emanate from different 'Revelations,' but have their origin in the One Torah, given by the One God]; one leader [i.e., Moses] uttered them from the mouth of the Lord of all Creation. Therefore make yourself like a hopper [which is funnelshaped and more enters than issues from it; i.e., hear all commentaries and interpretations of the Torah; then discern the Truth] and

All the various opinions do not emanate from different 'Revelations,' but have their origin in the One Torah.

*The Shulchan Aruch (Orach Chaim 139:10) explains that this concept of a dual Torah is embodied in the blessing recited upon the conclusion of the Torah reading: וְהָיָה כְּעֵץ אֲשֶׁר יִצְטָק, Who has given us a Torah of truth — this refers to the Written Torah; וְהָיָה כְּעֵץ אֲשֶׁר יִצְטָק, and Who has implanted within us eternal life — this refers to the Oral Torah. The verb referring to the Oral Torah is truly remarkable. We are told that God 'implanted it within us.' The word for planting, יָצָק, is the same verb used for planting a tree. God *planted* His law within us, meaning that we can nurture it and make it grow, just as we can turn an acorn into an oak tree.*

God planted His law within us, meaning that we can nurture it and make it grow, just as we can turn an acorn into an oak tree.

Israel was privileged to receive God's precious gift of having its human wisdom become a part of the Torah itself.

In his commentary to Shulchan Aruch (ibid.), Vilna Gaon cites the Talmud's interpretation (Chagigah 3b) of Koheles (12:10-11). Verse 10 tells that King Solomon sought to find יָצָק, words of truth recorded properly; this the Talmud refers to the Written Torah. Verse 11 goes on to speak of יָצָק, the words of the wise. It compares their words to the תְּרִבִּי, goads, that prevent a plowing animal from straying out of its proper furrow. The verse also cautions that the words of the wise are as firm and immutable as יָצָק, well-driven nails.

It is remarkable that the verse describes inanimate, firmly anchored nails as יָצָק, a word that literally

their land and rebuild the Temple, the responsibility of leadership passed to wise men of the Oral Torah.

Even an opinion that is rejected is worthy of study and respect, because it has a basis in the Torah.

Torah knowledge, even though it contradicts other opinions. Even an opinion that is rejected by the halachah is worthy of study and respect, because it has a basis in the Torah. Perhaps, as so often happens in the Talmud and Codes, that opinion is found to prevail in a particular set of circumstances or it helps shed light and clarify the normative opinion.

V. Ezra — Giver of Torah*

Delayed Journey

כל וְאֶת שְׂפָרְךָ בֶּן נִרְיָה בָּרִיךְ לֹא הִגִּידוּ יְצִיאָהוּ
As long as Baruch ben Neriah was alive, Ezra did not leave him to ascend [to Eretz Yisrael] (Megillah 16b).

Why did Ezra, of all people, choose to remain behind for so long?

This explains why Ezra, the leading figure and the greatest of his people in those formative years, did not even come to Eretz Yisrael until *twenty-three* years after the first wave of Jews returned under the leadership of Zerubabel ben Shealtiel, scion of the Davidic dynasty, and Jeshua ben Jozadak, the *Kohen Gadol*. [See chart p. 157.] This seems strange, indeed, especially in view of his condemnation of the Levites and others who preferred the security and prosperity of Babylonia and Persia to the tribulations of rebuilding the land (8:15; *Yevamos* 86b). Why did Ezra, of all people, choose to remain behind for so long?

Ezra's teacher, the prophet Baruch ben Neriah, was too old and frail to make the journey to Eretz Yisrael, and as long as he lived, Ezra would not leave him (*Megillah* 16b). He stayed at Baruch's side *to clarify his learning under his teacher's tutelage (Shir Hashirim Rabbah 5:5)*. It is from Ezra's decision to stay with Baruch that the Talmud (*Megillah* 16b) derives that Torah study is not interrupted even to build the Temple.

There is special significance in the fact that Ezra was the one whose experience revealed this primacy

*This section, too, is based on *Ohr Gedalyahu*.

Since we are accustomed to the laws of nature, we do not look at these puzzling phenomena as contradictory.

develop a perceptive heart to understand the words of those who pronounce 'unclean,' and the words of those who pronounce 'clean'; the words of those who prohibit and the words of those who permit ... (*Chagigah* 3b).

The concepts of Torah study and the opinions of its wise men are compared to the physical world of goads, nails, and plants. In the physical world we see countless opposites operating in complementary harmony, such as fire and water, light and darkness, centripetal and centrifugal forces. Had we not grown up with acceptance of these 'natural' occurrences, we would find their interaction incomprehensible. But since we are accustomed to the laws of nature, we do not look at these puzzling phenomena as contradictory. That is 'how it is,' and we build our principles of knowledge accordingly. To do otherwise is to act at our own peril. Even when newly discovered phenomena, such as the behavior of the rings around Saturn, seem to contradict the previously defined and proven laws of physics, we are surprised but not shattered. We know that the new facts will be assimilated into the old structure somehow, and necessary modifications and innovations will be made to adjust our mathematical formulae to reality. Because 'One Shepherd' created all in accordance with His intelligent plan, logic dictates that there must be unity in the universe and that our failure to understand it can be due only to imperfect or insufficient knowledge. Perhaps some day we will know more, perhaps not; but meanwhile the universe is not nullified because it does not conform to our current state of understanding.

Similarly, the apparent proliferation of disputes in the Oral Torah — some ruling 'clean' and some ruling 'unclean,' some ruling 'guilty' and some ruling 'innocent' — must be seen in the perspective of the fact that ultimately all opinions are *coming from one Shepherd*. Provided that each opinion is based on the Torah itself, it remains an expression of the truth, a facet of the total fabric of

The apparent proliferation of disputes in the Oral Torah must be seen in the perspective of the fact that ultimately all opinions are coming from one Shepherd.

coincidence? No, not at all. The Sages consider it important to tell us about Ezra's stature because he *was* cast in a parallel role to that of Moses. Just as Moses was the agent who transmitted the Written Torah to Israel, Ezra was the agent who, in a crucial period in our history, was the leader and catalyst in the blossoming of the Oral Torah.

The court of Ezra is what is known as the Men of the Great Assembly. They were Haggai, Zechariah and Malachi, Daniel, Hananiah, Mishael and Azariah, Nechemiah ben Hachaliah, Mordechai Bishan, Zerubabel, and many sages with them, a total of 120 elders (Rambam, Intro. to Mishneh Torah).

During the period of the Second Temple, the principles of Scriptural exegesis and Talmudic reasoning were utilized to articulate, derive, and develop the immense body of law and logic that became the Talmud and from which the infinite body of Rabbinic literature began to flow. Since Ezra was their leader it was not a coincidence that a new era of Torah knowledge coincided with his emergence.

They realized that the nation's renewed vigor required some form of spiritual grandeur to compensate for the loss of the Shechinah and prophecy.

of Torah study. It was he whose dominant presence was to inaugurate the new era of the Oral Torah. Consequently, it was incumbent upon Ezra to perfect himself in his Torah knowledge. His Torah study was more important than the construction of the Temple, because the Temple itself, in this new phenomenon of Jewish history, depended upon the highest possible level of Torah knowledge and insight.

This emergence of Torah sages as the guiding lights of the people was not an accident of history; it was revealed in a prophecy of Zechariah ben Iddo who, together with Haggai, delivered God's command that Zerubabel and Jeshua commence building the Temple even without the king's permission (see 5:1). Zechariah was shown a vision of redemption. The Temple would be rebuilt and the *Menorah*, which symbolizes the luminescence of Torah knowledge, would once again illuminate the world. As part of his vision he saw the *Menorah* flanked by two olive trees. The angel of God told him [as interpreted by *Sanhedrin* 24a] that the olive trees symbolized the Torah scholars of Eretz Yisrael and Babylonia (*Zechariah* 4:11-14). Thus, as part of the joyous prophecy that the exile was coming to an end and the Temple would again cast its spiritual glow upon the nation, Zechariah was shown that henceforth the scholars of the age would be the prime forces in fueling the flame and assuring its survival.

רָאוּהָהֵיכָל עָזְרָא שְׁתַּתָּן תּוֹרָה עַל יָדוֹ לְיִשְׂרָאֵל
אֶלְמָלֵי קִדְמוֹתָא.

*Ezra was worthy for the Torah to have
been given to Israel through him, had
Moses not preceded him (Sanhedrin 21b).*

At first glance it would seem that only an accident
of history deprived Ezra of a mission for which he
was well qualified. Had not Moses preceded him,
Ezra would have been the agent to present the Torah
to Israel. But, because he lived a thousand years too
late, he was denied the opportunity. A sad

An Overview / Ezra – Molder of a New Era [xxxvii]

Rambam and others, why should there have been such an obsessive passion for it that even prophets were ignored and murdered in the people's headlong passion to choose strange gods and pagan ceremonies over the one God and His Torah?

The Price

We will never know the answer to this question, just as a person without a sense of smell can never know the fragrance of perfume. The Talmud (*Yoma* 69b) tells us that at the outset of the Second Temple period, the Men of the Great Assembly prayed that the passion for idolatry be removed from the Jewish people. To them, idolatry was not a historical curiosity; they had seen its effects and they were aware of its attraction. They had seen it at work and wept at its effects. They knew that it was capable of destroying the new commonwealth just as it had destroyed the old. Therefore they pleaded that it no longer be a powerful lure.

To them, idolatry was not a historical curiosity; they had seen its effects and they were aware of its attraction.

Their prayer was answered, but at a price. Every struggle involves prizes and penalties. A person who grapples with a difficult choice between one path and another becomes stronger and better for having made the right choice, and vice versa. In ancient Eretz Yisrael, the greatest spiritual struggle people faced was that presented by the powerful attraction of idolatry. Often, the prophets of the idols seemed so right, so lofty, that it seemed blasphemous to disobey them, no matter what they preached. The Torah itself (*Deuteronomy* 13:1-4) tells us that false prophets may even perform undeniable miracles to support their case — but even then, our love for God must be consuming.

False prophets may even perform undeniable miracles to support their case — but even then, our love for God must be consuming.

When Israel was confronted by the vile and passion of false prophets, by the tantalizing attraction of idol worship, and the nation refused to succumb, it earned the privilege of closeness to God and deeper insights into holiness. This was the essence of prophecy and *נִבִּיאוֹת הַשֵּׁכִינָה*, the resting of the Divine Presence [*Shechinah*].

the construction of the Temple unless the generation was granted an intensified degree of insight into the Torah:

אָף עַל פִּי שְׂלֵא שְׁרָתָה שְׁכִינָתָה שָׁמָּה מִכֵּל מִקְדָּשׁ
עֵינֶיךָ הַתּוֹרָה וְיָדְךָ הַתּוֹרָה לֹא הָיָה אֵלָּא בְּרִית שָׁמָּה,
שְׂלֵא רָצוּ לִכְנוֹת עַד שְׁתַּבְּטִיחֶם הַשָּׁמַיִת לְעֻלּוֹת לָהֶם
רַחֲמֵי תוֹרָה.

Even though the Divine Presence did not rest on the Second Temple, nevertheless, the main part of Torah, its splendor and its glory, was only in the period of the Second Temple, for they [i.e., the Men of the Great Assembly] did not wish to build it until HASHEM, Blessed is He, promised that He would reveal to them the secrets of the Torah (*Pirkei Heichalos* 27).

The First Temple and the Jewish nation had crumbled spiritually because of the sin of idolatry.

Vilna Gaon (glosses to *Seder Olam*) explains the direct relation of the new emphasis on the Oral Torah to the loss of prophecy. During those early, troubled days when Jerusalem and the Temple were being built in fits and starts (as narrated in *Ezra* and *Nehemiah*), the Men of the Great Assembly looked to the future of the nation in the light of its downfall of the past. The First Temple and the Jewish nation — both the Ten Tribes of Samaria and the Kingdom of Judah — had crumbled spiritually because of the sin of idolatry. All the prophets from Moses onward had warned eloquently and strenuously about the pitfalls of this cardinal sin. Nevertheless, Israel succumbed, with the result that it was banished from its land and nearly destroyed as a people.

Of all the sins of the ancients, this is the hardest for modern Jews to understand. We can identify with sins of the flesh; what human being has never been tempted? We can comprehend greed for money or power and the excesses it can lead to, even bloodshed; the daily newspapers are sufficient proof that there is nothing esoteric about such moral corruption. But why were the people of Torah and spirituality tempted by images and idols that not even a child takes seriously today? And even if a rationale could be found for idolatry, as explained by

Why were the people of Torah and spirituality tempted by images and idols that not even a child takes seriously today?

The Menorah represents the glow of the Oral Torah, and in the formative years of the nation, it was Aaron's role to develop that aspect of the Torah.

halachically, the Menorah may be kindled even by an Israelite. The Menorah represents the glow of the Oral Torah, and in the formative years of the nation, it was Aaron's role to develop that aspect of the Torah among the people.

Therefore, too, when the Syrian-Greeks threatened to extinguish the light of Torah from among the Jewish people and replace it with Greek culture, it was the priestly Hasmonean family that led the revolution that saved Israel as the nation of Torah. That is why they insisted on setting up and kindling a makeshift Menorah as soon as they regained the Temple. They used wood and iron because nothing else was available immediately, but they refused to delay. Their purpose was not to celebrate the military victory, but to reinforce the concept that Torah study is supreme, the main reason for their fight (see Overview to ArtScroll *Chanukah*).

Ezra, as a Kohen, carried the banner of Aaron.

Ezra, as a Kohen, carried the banner of his ancestor Aaron and emerged as the leader in a generation of giants. To conceive of the Jewish people today without the guidance, wisdom, and vision of the Men of the Great Assembly is an impossibility. They provided the strong response to unprecedented situations, and as their leader, Ezra was the key figure around whom their work revolved. It is noteworthy that Rambam refers to the entire assembly as *Ezra's beis din* [court].

The Great Assembly

Why were they called the 'Men of the Great Assembly'? Because they returned [God's] crown as it was of old.

לָמַד נִקְרָא שְׁמֵן אַנְשֵׁי בֵּיתִי הַגְּדוֹלָה שְׁדוּחֵיהֶּיךָ עֶקְרָה לִישְׁעָה. אָתָּא מִשָּׁה אֶמֶר, "הֲאֵל הַגְּדוֹל הַגָּבוֹר וְהַנּוֹרָא, אָתָּא יִרְמְיָה וְאֶמֶר, "נִכְרָם מְשֻׁמְעֵבְרִים בְּכֶנֶךָ נִקְרָא. אָתָּא דִּנְיָאֵל אֶמֶר, "נִכְרָם מְשֻׁמְעֵבְרִים בְּכֶנֶךָ — אֵיךְ גְּבוּרָתְךָ, לֹא אֶמֶר גְּבוֹר. אֵתָּה אֵינְךָ וְאֶמֶר, "אֲדוֹכָא זֶה הוּא גְבוּרָתְךָ שְׂבוּבָשׁ אֵת רַצוֹנֵי שְׁבוֹתֵי אֶרֶךְ אֲפִים לְרִשְׁעִים. וְאֵלֶּיךָ הֵן נִרְאוּתְךָ שְׂאֵלְמָלָא מִן־אֵל הַקְּבִ"ד הֵי־אֵךְ אִמְרָה אֵתָּה יְכֻלָּה לְהַחֲזִיקֵם בְּדִין רְאוּמוֹתֵיךָ."

Why were they called 'Men of the Great Assembly'? Because they returned [God's] crown as it was of old. Moses had come

Prophecy was the fitting reward for a triumph over the strong pull toward the spiritual attraction of evil and false spirituality.

Prophecy is a communication from God to man. The 'resting of the *Shechinah*' means that Godliness becomes visible in man's behavior, that a person's attitudes and actions are a direct reflection of God's will. Thus, prophecy was the fitting reward for a triumph over the strong pull toward the spiritual attraction of evil and false spirituality. When the Men of the Great Assembly accomplished the removal of the spiritual challenge of idolatry, the reward of prophecy likewise was withdrawn. Idolatry and prophecy balanced one another in the scale of strife and reward, when one was gone the other was removed.

Prophecy, like the Written Torah, is the direct word of God. But there is an indirect word of God as well: the Torah that permeates the mind and heart of those who immerse themselves in its study and absorb its message. As the Talmud teaches, 'From the day the Temple was destroyed, even though prophecy was taken from the prophets, it was not taken from the wise men' (*Bava Basra* 14a). Ramban explains that those who are wise in the Torah can derive from it God's will and intent.

The Kohen's Uniqueness

The first place in the Torah where a particular principle or phenomenon is found is the key to understanding its essence.

In addition to his greatness in learning, piety, and leadership, Ezra was a Kohen, and that had an important bearing on his mission. For the teaching of the Oral Torah was the particular province of the priestly family from Israel's early days in the wilderness. R' Tzadok HaKohen of Lublin pro-pounds that the first place in the Torah where a particular principle or phenomenon is found is the key to understanding its essence. The first place where the principles of the Oral Torah were used to derive the law was where Aaron proved through logic that the Rosh Chodesh *musaf* [additional offering] should be burned if no Kohanim were eligible to eat it (*Leviticus* 10:16-20). This indicates that the analysis and teaching of the Oral Torah is the particular province of the Kohanim. That is why Aaron kindled the Tabernacle Menorah during all the forty years in the wilderness even though,

wisdom. It was their mission to interpret the Torah's response to history just as they would its principles to new questions in halachah.

Earlier generations had seen God's attribute of Judgment in its simple, direct form. Good was rewarded and evil was punished.

Earlier generations had seen God's attribute of Judgment in its simple, direct form. Good was rewarded and evil was punished. Time might go by before the judgment was executed, but sincere, perceptive people saw the connection between human deeds and Divine response. In the aftermath of the first Destruction, Judgment seemed to be suspended while its Executor slumbered. The prophets Jeremiah and Daniel could not testify to what they could not see. Where was His might? Where was His awesomeness? Where was His judgment?

The standard bearers of the Oral Torah saw a new manifestation of Judgment. It was a *harsh* judgment (see above, p. xxv), but it was a course dictated by mercy. They saw that evil had proliferated to the point where the only way God could preserve the universe was to stand back and not wipe out evildoers. Nevertheless, the Sages also realized that God's master plan would still move inexorably to completion, though its movement would be barely discernible, if at all. He was surely no less mighty and awesome than He had been when He split the Sea of Reeds or snuffed out the lives of Sennacherib's entire army. The Sages of the time perceived a new manifestation of might: who but the All-Powerful could stand patiently, impassively by while the wicked mocked Him, desecrated His Temple, and tormented His children? Silence can be as powerful as roaring anger, and forbearance for the sake of a goal demands at least as much strength as a wrathful blow.

And they perceived a new manifestation of awesomeness: what awe must permeate creation if seventy raging wolves could not devour one defenseless lamb! Israel was scattered among hostile nations, but they were unable to destroy it. Truly an awesome power was protecting Israel when its statehood and armies had ceased to exist.

Of all the achievements of the Great Assembly, the Sages singled out one for special distinction.

Jeremiah and Daniel were not wrong when they failed to discern God's might and awesomeness.

and said 'the great, mighty, and awesome God' (Deuteronomy 10:7). Jeremiah had come and said, 'Gentiles revel in His Sanctuary, where is His awesomeness?' [Because Jeremiah could not see how God was displaying His awesomeness, when he spoke of God he] did not say 'awesome' (see Jeremiah 32:18). Daniel came and said, 'Gentiles subjugate His children — where is His might?' [Because Daniel could not see how God was displaying His might, he] did not say 'mighty' (Daniel 9:4). They [the Men of the Great Assembly] came and said, 'To the contrary — this is His might, that He suppresses His will and is slow to be angry with the wicked. And this is His awesomeness, that if not for the awe of the Holy One Blessed is He, how could a single nation survive among the nations?' (Yoma 69b).

Of all the achievements of the Great Assembly, the Sages singled out one for special distinction. Why was this group of men called 'great'? Because they restored the adjectives גד and כח, mighty and awesome, to the list of God's praises, and incorporated those words into the opening blessing of *Shemoneh Esrei* (Yoma 69b; see full citation above). It took the unique spiritual insight of the Talmudic Sages to isolate this as a paramount accomplishment, and if we understand it properly, this seemingly unimportant modification in the liturgy is symbolic of the full range of the Assembly's activity.

Jeremiah and Daniel were not wrong when they failed to discern God's might and awesomeness at a time when enemies cavorted in the Temple and subjugated Israel. But they were prophets, accustomed to the Written Torah, the direct word and clearly perceived hand of God, and looking at the tragic degradation of all that was holy, they could not find might or awesomeness. The Men of the Great Assembly looked with the prophecy of

In the case of the First Temple, though Israel did have possession of the land, it was not habitation but conquest that they relied upon to make it theirs and give it holiness. It is true, as Kesef Mishnah argues, that there was Jewish possession as well, but it was incidental to the conquest. The Jewish people based their dominion and sanctification on the sovereignty born of conquest. But once the land was conquered by Assyria in the north and later by Babylonia in the south, Jewish sovereignty ended, and with it the sort of possession upon which the Jews relied.

A New Era

The Second Commonwealth achieved its status despite foreign domination.

remained in the land even during the exile, why should the loss of Jewish sovereignty have nullified the sanctification? In the case of the First Temple, though Israel did have possession of the land, it was not habitation but conquest that they relied upon to make it theirs and give it holiness. It is true, as Kesef Mishnah argues, that there was Jewish possession as well, but it was incidental to the conquest. The Jewish people based their dominion and sanctification on the sovereignty born of conquest. But once the land was conquered by Assyria in the north and later by Babylonia in the south, Jewish sovereignty ended, and with it the sort of possession upon which the Jews relied.

In the case of the Second Temple, however, the directness of conquest was lacking, just as the clarity of the Written Torah and prophecy were lacking. Ezra and his colleagues endowed the land with sanctity because it was possessed by the people of Israel. Yerushalmi Shevi'is (6:1, 17b) expounds that the Second Commonwealth was superior to the First in the respect that Israel's original possession of the land could come about only under circumstances of independence, whereas the Second Commonwealth achieved its status despite foreign domination. Less perceptible — yes. Less pleasing to those who feel that nationhood must have the trappings of invincibility — most certainly! But there was a powerful virtue in this kind of sanctification, for it has survived conquest, destruction, and exile. The holiness of Eretz Yisrael today derives from Ezra's settlement, not Joshua's conquest (see R' Chaim Soloveitchik, *Chidushai HaGrach, Gittin*).

Rabbi Samson Raphael Hirsch (*Horeb*) explains the basic difference between the premises upon which the two commonwealths were built. Joshua proclaimed sanctification and based nationhood upon political independence. That is why the sanctity could not survive the loss of sovereignty. But Ezra's world was different. Cyrus ruled the world, not Zerubabel. Israel could not hope to regain

Because of this insight, the Sages gave to the leaders of that generation the title 'the Great Assembly.' Only with their sort of penetrating understanding could Israel delve into its Torah and its history in the epoch that was then beginning.

VI. The Land's Holiness

Conquest

When the people of the exile ascended and took possession of some of the land, they gave it a second holiness that endures forever.

קדש ראשון קדש שני
לא כן שני בן הולך והולך במקדש
קדש קדש שני העקרה לעולם.
The first holiness [i.e., the sanctification of the land pronounced by Joshua] sanctified it only for that time [when Israel was sovereign over Eretz Yisrael] but did not sanctify it for all time (Chagigah 3b).
When the people of the exile ascended and took possession of some of the land, they gave it a second holiness that endures forever (Rambam, Hil. Terumos 1:5).

In an important sense, the new nature of the Jewish experience that began in the Second Temple era, muted and subdued though it was, had a more permanent effect than that of the miraculous conquests of Joshua and David.

Rambam (ibid.) explains that the first sanctification was put into effect by *כבוש*, conquest, and therefore became nullified when Israel was no longer sovereign over its land. The second sanctification, however, did not result from conquest, because Eretz Yisrael was part of the Persian Empire and the Jews were permitted to settle there only by the sufferance of Cyrus. That sanctification was based on *הקדש*, possession, i.e., the fact that Jews were again living in Eretz Yisrael. Since then, there have always been at least some Jews on the land, even in times when it was incredibly dangerous for them to be there.

It is true, of course, as Kesef Mishnah states, that even during the First Commonwealth, there was *הקדש*, possession, even though the land had been conquered originally. Since a handful of Jews

That sanctification was based on the fact that Jews were again living in Eretz Yisrael.

But Cyrus lacked the will or wisdom to seize the privilege; instead he gave it to the Jewish people.

will that Cyrus, not the Jews, build the House of God and bring its children back to its holy environs. But Cyrus lacked the will or wisdom to seize the privilege; instead he gave it to the Jewish people (Megillah 12a). The righteous Persian monarch decreed that the Jews might go home again – and only 42,360 heeded his call! Forty-two thousand heard the call of prophecy but millions stayed behind.

There were two other prophecies, so similar that they could almost be considered as one, but they were different:

כִּי כֹה אָמַר ה' בִּי לֵבִי מָלְאָת לִבְכֶּל שְׂבָעִים שָׁנָה
אֶפְקֹר אֶתְכֶם וְהִקְוִיתִי עֲלֵיכֶם אֶת דְּכָרִי הַטּוֹב
לְהִשִּׁיב אֶתְכֶם אֶל הַמָּקוֹם הַזֶּה.

For thus said HASHEM, 'After seventy years of Babylon are completed, I will remember you and establish My good word concerning you to return you to this place' (Jeremiah 29:10).

אֲנִי דָנִיֵּאל בִּנְיָנִי בְּסֻפְרֵי מִסְפָּר הַשָּׁנִים אֲשֶׁר הָיָה
דְּכָרִי ה' אֶל יִרְמְיָהוּ הַנָּבִיא לְמִלְאוֹת לְהַרְבֵּה
יָרֻעִים שְׂבָעִים שָׁנָה.

I, Daniel, considered in the books the number of years whereof the word of HASHEM came to Jeremiah the prophet that he would complete seventy years of the ruins of Jerusalem (Daniel 9:2).

Both Jeremiah and Daniel said that the Babylonian exile would end after seventy years, but there was a difference between the two prophecies. Jeremiah spoke of 'seventy years of Babylon,' implying that the seventy-year period depended on the chronology of Babylonian history. Daniel, on the other hand, spoke of the ruins of Jerusalem, implying that the end of the exile would be counted from the Destruction. Did the two prophecies contradict one another? How could both be correct?

King Nebuchadnezzar of Babylonia conquered Eretz Yisrael in the year 3319 from Creation. In the seventieth year from that conquest, 3390, Cyrus gave the electrifying announcement with which the

Ezra understood that Israel's new role was to forge a spiritual nationhood.

its land by conquest; never was it ordained that they would. Two centuries earlier, Isaiah had prophesied that Cyrus would build the Temple (Isaiah 45:1-3), implying plainly that Israel would not have the power to do so, as indeed, it didn't. What, then, would be Israel's role? Ezra understood that Israel's new role was to forge a spiritual nationhood. It would derive nurture from Eretz Yisrael by living there and by living up to the ideals set forth by the Torah and expounded by the Sages. Instead of the political independence of the First Commonwealth, Ezra based Israel's future on spiritual independence. Only during the relatively brief period of the Hasmonean dynasty was the Second Commonwealth a strong political and military power (see ArtScroll Chumukah), but no nation on earth has so consistently been a spiritual superpower, even in exile and degradation.

VII. Three Prophecies

Perplexities

There were three prophecies concerning the Second Temple and, as is often the case with such Divine messages, their definite meaning was nebulous until they were fulfilled. The first was delivered by Isaiah:

כֹּה אָמַר ה' לְמַעַן עֲבֹדִי יַעֲקֹב
וְשָׂרְאֵל בְּדֹרֵי ... הָיָה יִבְנֶה עִירִי וְלִלְחֹתִי

... יִשְׁלֹחַ
So said God to His anointed, to Cyrus ...
For the sake of Jacob My servant and Israel My chosen ... he shall build My city and he shall free My captives (Isaiah 45).

Cyrus, who wept and groaned over the Temple's destruction, became God's chosen instrument to fulfill the ancient prophecy.

Cyrus, who wept and groaned over the Temple's destruction (Seder Eliyahu Rabbah, 19), became God's chosen instrument to fulfill the ancient prophecy and bring the glory of the Divine Presence back to the holy mountain where Abraham bound Isaac to the altar, where Jacob beheld the heavenly ladder, where David set his hopes, and where Solomon build the Temple of God. It was the Divine

וְכַכֵּם מִכָּל עַמֵּי יִשְׂרָאֵל.
*The Holy One Blessed is He said to
 Messiah, 'I grieve to you regarding Cyrus.
 I said he would build My city and gather in
 My exiles, but he said, "Anyone among
 you of His entire people ... let him go up"'*
 (Megillah 12a).

*Remembrance
 refers to the
 beginning of the
 process: When
 God 'remembers'
 His people, a
 process begins that
 may take years,
 sometimes even
 centuries.*

Cyrus fell short of his potential. Nevertheless, he performed a vital task, because by allowing Jews to go back home he set in motion the הָיָה , God's remembrance of His exiled children. Jeremiah had said that God would 'remember' Israel 'after seventy years of Babylon are completed.' As R' Moshe Chaim Luzatto explains (*Maamar HaGeulah*), the term הָיָה , remembrance, refers to the beginning of the process: When God 'remembers' His people, a process begins that may take many years, sometimes even centuries to complete. In a sense, he explains, the remembrance that began with Cyrus is still developing, because the Second Commonwealth was not a complete redemption. It was the beginning of a new era and the new bulwark of the Oral Torah that insures Israel's survival to this day and that will maintain Israel's spiritual strength until the coming of Messiah, may it be speedily in our days.

Only a short time after Cyrus' magnanimous gesture, his successor ordered a halt to the construction (4:21). However, God's 'remembrance' had begun and continued to develop despite royal displeasure. Eighteen years after Cyrus' initial decree, Darius ordered that the Second Temple work be completed (ch. 5).

The change of languages in the *Book of Ezra* is an indication of the importance attached to Cyrus' accomplishment. Several times, the Book switches between Hebrew to Aramaic. An examination of the text reveals that royal Persian documents and decrees are given in Aramaic while the narrative and the conversation of the Jews is given in Hebrew. The exception to this is the first chapter, where Cyrus' royal decree permitting the Jews to settle in Eretz Yisrael and rebuild the Temple is stated in Hebrew, a

*We can imagine
 the consternation
 of Israel. What of
 Isaiah's prophecy
 that Cyrus, as
 God's anointed,
 would build the
 Temple?*

Clarity

*Cyrus had fallen
 short of the august
 role he could have
 had, but he had
 still performed a
 noble deed.*

Book of Ezra begins: the Jews were permitted — urged — to return to their land and rebuild their Temple. It was seventy years since Babylonia's ascendancy over Eretz Yisrael, an event that perhaps could also be understood as 'ruins of Jerusalem,' because the glory of the Holy City had been tarnished, not to return.

But only a few years later, in 3392, Ahasuerus became king and ordered that the construction of the Temple be stopped (see ch. 5).

We can imagine the consternation of Israel. What of Isaiah's prophecy that Cyrus, as God's anointed, would build the Temple? If, indeed — as seemed undeniable — Jeremiah's seventy years were counted from the conquest, then apparently the promise had been aborted. Had God banished Israel forever from His presence? Had a sinful Jewish nation forfeited its chosenness?

Then, in 3408, exactly seventy years after the destruction of Jerusalem, the prophets Haggai and Zechariah declared to Zerubabel and Jeshua that God willed them to complete the building of the Temple without waiting for royal permission (5:1). They complied and not long after, Darius, the new Persian king — the son of Ahasuerus and Esther — ratified their decision.

Now, the meanings of the three prophecies were clear. Cyrus had fallen short of the august role he could have had, but he had still performed a noble deed by initiating the building of the Temple. Cyrus was given a lofty mission and a proud title — he was called God's anointed because he was assigned by the Author of history to follow in the footsteps of David and Solomon by building the Temple and ending Israel's exile (*Isaiah* 45:1,13). But Cyrus failed to seize the opportunity fully. Instead of carrying out his task, he merely gave permission and support to the Jews who wished to go — and even that was half-hearted and fleeting, as the *Book of Ezra* tells us.

אָמַר לֵיהּ הַכִּי"ד לְקִשְׁטִי, קוֹבֵל אֲנִי לָךְ עַל כְּוֹנֶנְשׁ.
 אָמַר אֶמְרָתְךָ הִוא יִכְבֵּה עֵרֶד וְיִקְבֹּץ גָּלְיוֹתֶיךָ, וְהִוָּא אֶמְרָךְ

for immorality. That the flesh is weak is not a new phenomenon. But how does one justify such behavior — especially by the nation of Torah, the nation that knew full well that God equates morality with holiness? (*Vayikra Rabbah*). We have seen what secular society has done when faced with this dilemma in the second half of the twentieth century; it has ridiculed shame and morality as symptoms of dishonesty and hypocrisy. It has transformed the word 'love' from a sublime emotion into a synonym for animalism. Jews smitten with lust during the Temple period turned to idols to legitimate their drives. The Jewish religion imposed high standards of behavior — but the idols winked at immorality, so idolaters flourished. When righteous people attempted to bar their path, the idolaters even resorted to murder. So the three cardinal sins — all born of lust — infiltrated Jewish holiness with impurity, driving the Divine Presence from the land and resulting in the Destruction and exile (*Michtav MeEliyahu*).

The Jewish religion imposed high standards of behavior — but the idols winked at immorality, so idolaters flourished.

If Israel was to repent immorality, it would be forced to do so in a region that was inhospitable to self-control.

As a result they were exiled to Babylonia, Media, and Persia — all lands that were distinguished primarily for their immersion in sensuality. If Israel was to repent immorality and the grievous sins that came in its wake, it would be forced to do so in a region that was inhospitable to self-control. Only then could it prove itself. Nor was it easy, even though the nation still had in its memory the terrors of the Destruction. A significant number of the people married non-Jewish wives in Babylonia. Shockingly, even the sons of Jeshua the *Kohen Gadol* married women who were halachically forbidden to *Kohanim* (*Sanhedrin* 93a).

The aftereffects of the lust that brought on the Destruction were felt not only in the exile, but even in its aftermath, for a significant number of those who were brave and dedicated enough to return to Eretz Yisrael could not resist the temptation to marry non-Jewish women *after* having returned to the land. Ezra's primary mission, when his teacher Baruch ben Neriah died and Ezra hurried to join his brethren in

The dual periods of seventy years coincided perfectly with the events from which they were dated.

surprising change of the pattern. But it is understandable in the light of Cyrus' prophetically foretold mission. His decree was a fulfillment of God's preordained task for His 'anointed.' Therefore Scripture gives it in the sacred tongue, Hebrew (*Rabbi Yehzekel Danziger*).

The dual periods of seventy years coincided perfectly with the events from which they were dated. Seventy years after Jewish sovereignty was ended by Nebuchadnezzar, a measure of it was returned by Cyrus. And seventy years after the Temple was destroyed, the Second Temple began taking shape by order of Haggai and Zechariah's prophecy and, later, Darius' decree.

VIII. Repentance and Redemption

Rationalization Born of Lust

Repentance should ideally involve a challenge by and a triumph over the very temptations that caused the exile in the first place.

Every exile is caused by a specific sin or set of sins, and the exile continues until Israel repents and atones for them. For repentance to be complete, it should ideally involve a challenge by and a triumph over the very temptations that caused the exile in the first place. The First Commonwealth was brought down by the cardinal sins of idolatry, adultery, and murder.

A statement of our Sages gives us an insight into the nature of people and their reaction to sin.

לֹא עָבְדוּ יִשְׂרָאֵל עֲבֻדָּה זָרָה אֶלָּא לְהַחֲזִיר לָהֶם עֲרִיזוֹת פְּתָרָהֶ֫מָּה.

Israel worshiped idols only as a means to permit itself public immorality (Sanhedrin 63b).

Normal human self-respect dictates that people seek to defend their actions. They may cite existentialism, the 'new' morality, the law of the jungle or whatever other 'philosophy' is currently fashionable — but there will always be some rationalization.

The nation of Israel in the period of the First Temple began to experience an uncontrollable urge

being. When Israel returned to its land, many of its sons brought along foreign daughters, but the sinners were like a smooth vase covered with dust. The outer filth is not a part of the vase — it is not even firmly attached. A few swipes of a cloth remove the grime and reveal the beauty of the vase. So, too, Ezra and his court were dealing with an essentially pure and virtuous nation. The response of even the ostensible sinners proved it.

The Lesson Another sin, though not in itself responsible for the of exile, had to be atoned for before it could end. For centuries before the exile, the people had failed to observe properly the prohibitions against working the fields during Sabbatical and Jubilee years. A total of seventy such years had been violated, prior to the Destruction. As a result, Eretz Yisrael lay desolate and fallow for the seventy years of the Babylonian exile to atone for the seventy years of rest that had been denied it (*Leviticus* 26:34-35, see *Rashi*).

Shemittah The Sabbatical year teaches a special lesson, one that was of particular importance in paving the way for the insights Israel had to have in the Second Commonwealth and beyond. *Shemittah* [the Sabbatical year] is one of the commandments that has the particular function of teaching that God alone controls nature. Without such faith, how could rational people refrain from planning for a full year? With the conclusion of the era of prophecy and the beginning of the new emphasis on the Oral Torah, Israel had to emphasize as never before the search for meaning and the hand of God where they had seemed to be hidden. Over was the age of open miracles and of direct, clear communication by God through prophets. From Ezra's time onward, the secrets of halachah and history had to be derived from the Torah through study and analysis.

The miracle of Purim, for example — which occurred during the painful years when the Temple construction had been suspended — is the prime lesson of God's control of 'normal,' 'everyday' events (see Overview to ArtScroll *Esther*). Such

Eretz Yisrael, was to purge the nation of this vestige of immorality.

As soon as Ezra and his entourage arrived in the land, the Jewish leaders came to him with the sad complaint that the returnees from Babylonia had not shed their gentile wives. It was not Ezra who discovered the calamity; the leaders appealed to him for help. Obviously, the heads of the nation, who must have included Zerubabel and Jeshua, were powerless up to Ezra's arrival. Ezra wept and fasted. He recited a public confession for the sins of his nation, and the people wept with him. They were moved and voluntarily accepted his plea to purify themselves and purge the vestiges of the immorality that lingered through the exile (see ch. 9,10).

The Inner Israel

Only someone who loves a wife and children can appreciate their emotional ordeal.

Lest we think that the returnees did not merit redemption of even an incomplete nature, let us look at their response to Ezra's urgings. The people listened to his call that they abandon their non-Jewish wives and families, and unanimously they agreed to make the enormous sacrifice for the sake of the nation and its Torah. Only someone who loves a wife and children can appreciate their emotional ordeal, but the nation that descends from Abraham and Isaac who freely went to the *Akeidah* if that was God's will — such a nation knows that there are higher loyalties, and sacrifices that are worth making.

Maharal, based on many sayings of the Sages, teaches that the sins of Israel besmirch its exterior, but do not reach into its *inner essence*. Deep inside the Jewish heart is a place that remains pure. It may be heavily insulated with overlays of habitual sins that usually make people impervious, even sharply antagonistic to the call of repentance. Nevertheless, there is a major difference between an evil person who has been trained to do good deeds and a good person who has been trained to sin. Each one has a veneer — strip away the veneer of good from the evil person and the veneer of evil from the good one, and you are left with the true human

Such awareness was crucial to the new existence of the Jewish people.

awareness was crucial to the new existence of the Jewish people, and the lessons of Purim were an essential prelude to the new mode of Jewish life. Therefore, it had to be demonstrated to them that the land could not be theirs unless it had the *Shemittah* rest, which was constant proof that plow and sower are but God's means — and surely not His only means to provide His faithful ones with sustenance.

Theirs are the lessons that maintained Israel's faith and vigor despite constant wanderings and buffetings.

We still live in Ezra's world and we try to see it through the lens his *beis din* shaped for us. Ezra and the Men of the Great Assembly returned the crown of God's greatness to its former splendor by teaching posterity to seek His active, beneficent hand behind the mists of history and the ephemeral ascendancy of the wicked. Theirs are the lessons that maintained Israel's faith and vigor despite constant wanderings and buffetings. And theirs is the inner flame that will illuminate the universe when the Final Redemption is at hand.

Rabbi Nosson Scherman
Cheshvan 5745



יום ראשון, (8 יוני 2009)

קישור מהיר: המעיין

המעין

גליון נוכחי: ניסן תשס"ט

[טבת תשס"ט](#)[תשרי תשס"ט](#)[תמוז תשס"ח](#)[ניסן תשס"ח](#)[טבת תשס"ח](#)[תשרי תשס"ח](#)[תמוז תשס"ז](#)[טבת תשס"ז](#)[תשרי תשס"ז](#)[חזרה למאמרי המעיין](#)

כתב התורה והבנת התורה / הרב יואל עמיטל

כתב עברי וכתב אשורי
משמעות שינוי הכתב
שינויים נוספים במסירת התורה
כתיבת התורה שבעל פה
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שינוי הכתב ע"י עזרא – כמסירת התורה מחדש
סיכום

כתב עברי וכתב אשורי

כידוע הכתב העברי הקדום הנקרא גם כתב דַּעַץ (או רַעַץ), אותו אנו מוצאים בכתובות עתיקות ובמטבעות, מציין אצל חז"ל את הכתב שרווח בימי בית ראשון. לעומתו הכתב שהשתמשו בו בימי בית שני נקרא במקורות "כתב אשורי", ולדעת כמה ראשונים ככל הנראה זהו כתב הנקרא בגמרא "ליבונאה". אמנם גם לאחר חורבן בית שני השתמשו בכתב העברי העתיק, ונמצאו מטבעות אף מימי מרד בר כוכבא שנשארו כתובות בכתב העברי[1].

עובדה זו מסבירה לנו את הגמרא במסכת מגילה (ב, ב):

ואמר רבי ירמיה ואיתימא רבי חייא בר אבא, מנצפ"ך צופים אמרום. ותסברא, והכתיב אלה המצות שאין נביא רשאי לחדש דבר מעתה, ועוד האמר רב חסדא מ"ם וסמ"ך שבלוחות בנס היו עומדין. אין, מהוה הוו, ולא הוו ידעי הי באמצע תיבה והי בסוף תיבה, ואתו צופים ותקינו פתוחין באמצע תיבה וסתומין בסוף תיבה. סוף סוף אלה המצות שאין נביא עתיד לחדש דבר מעתה. אלא שכחום וחזרו ויסודום.

הסיבה ששכחו את האותיות הסופיות היא משום שבכתב העברי הקדום לא היו אותיות סופיות, ולכן כנראה לא היו רגילים להשתמש בהן ושכחום. אלא שאם כן יש לשאול, איזה כתב היה על לוחות הברית, האם הכתב המרובע או הכתב העברי? מדברי רב חסדא: "מם וסמך שבלוחות בנס היו עומדין" משמע שהכתב היה הכתב המרובע. אך אמנם בירושלמי מגילה (פרק א הלכה ט) נאמר:

תני רבי שמעון בן אלעזר אומר משום רבי אלעזר בן פרטא שאמר משום רבי לעזר המודעי, כתב אשורי ניתנה התורה, מה טעמא ווי העמודים שיהו וויים של תורה דומים לעמודים. אמר ר' לוי, מאן דאמר בדעץ ניתנה התורה עי"ן מעשה ניסים, מאן דאמר אשורי ניתנה התורה סמ"ך מעשה ניסים.

גם הגמרא במסכת סנהדרין (כא, ב) מתייחסת לשינוי זה של הכתב, ומייחסת אותו לעזרא:

אמר מר זוטרא ואיתימא מר עוקבא, בתחלה ניתנה תורה לישראל בכתב עברי ולשון הקודש, חזרה וניתנה להם בימי עזרא בכתב אשורית ולשון ארמי, ביררו להן לישראל כתב אשורית ולשון הקודש והניחו להדיטוטות כתב עברית ולשון ארמי. מאן הדיטוטות, אמר רב חסדא כותאי. מאי כתב עברית, אמר רב חסדא כתב ליבונאה. תניא רבי יוסי אומר, ראוי היה עזרא שתינתן תורה על ידו לישראל אילמלא קדמו משה... ואף על פי שלא ניתנה תורה על ידו נשתנה על ידו הכתב... וכתבי וכתב את משנה התורה הזאת, כתב הראוי להשתנות[2]. למה נקרא אשורית, שעלה עמהם מאשור. תניא רבי אומר בתחלה בכתב זה ניתנה תורה לישראל, כיון שחטאו נהפך להן לרועץ, כיון שחזרו בהן החזירו להם... למה נקרא שמה אשורית, שמאושרת בכתב. רבי שמעון בן אלעזר אומר משום רבי אליעזר בן פרטא שאמר משום רבי אלעזר המודעי, כתב זה לא נשתנה כל עיקר וכו'[3].

על המשנה (מסכת ידים פרק ד משנה ה) האומרת שכתב עברי אינו מטמא את הידים כתב הרמב"ם בפירוש המשניות: ...וכתב זה שאנו כותבין בו את התורה הוא כתב אשורי, ובו כתב יתעלה את התורה, ונקרא אשורי ענין גדולה והדור, באשרי כי אשורני בנות, והוא אמרם אשורי שהוא מאושר שבכתב לפי שאין אותותיו מתחלפות, ולא יארעו בו ספקות כלל מפני שאין אותותיו דומות, ואין אות מתחברת לחברתה במשפט כתיבתו, ואין כן שאר מיני הכתב.

בגמרא כתובים שני טעמים מדוע נקרא הכתב אשורי, או משום שעלה עמהם מבבל, או משום שהוא המאושר שבכתב, והטעם שמביא הרמב"ם הוא הטעם השני שבסוגיה. על קדושת הכתב האשורי כתב הרמב"ם בתשובה[4]:
וממה שחייבים אתם לדעתו, שזה הכתב ר"ל כתב אשורי, הואיל ובו ניתנה תורה כמו שנתברר, ובו נכתבו לוחות הברית, מגונה להשתמש בו חוץ מאשר בכתבי הקודש. ולא פסקו ישראל מלהשמר בזה, והיו אגרותיהם וחיבורי חכמותיהם וכתבי חול שלהם בכתב עברי לבד, ולכן תמצא חרות תמיד על שקלי הקודש דברים של חול בכתב עברי, ולא תמצא כלל אות אחת מזה בכתב אשורי בדבר משארות ישראל, לא בחריתת מטבע ולא בחריתת אבן, אלא כל זה בכתב עברי. ובגלל זה העניין שינו הספרדיים כתבם ונתנו לאותיות צורות אחרות, עד שנעשה כאילו כתב אחר, כדי שיהיה מותר להשתמש בו בדברי חול[5].

משמעות שינוי הכתב

בנדון שינוי הכתב בסוגיה בסנהדרין יש לברר:

- א. לדעה שהכתב נקרא "אשורי" משום שעלה עמהם מבבל, מדוע נקרא כך, הרי לאשורים לא היה כתב כזה[6]?
- ב. מה היתה הסיבה שעזרא החליף את הכתב (או נתן גושפנקא רשמית להחלפת הכתב גם בספרי התורה)?
- ג. בדברי הגמרא "ראוי היה עזרא שתינתן תורה על ידו לישראל... ואף על פי שלא ניתנה תורה על ידו נשתנה על ידו הכתב", יש לשאול מה ההשוואה בין נתינת תורה ובין שינוי הכתב?

כתב היעב"ץ בספר מגדל ע"ז שלכל הדעות הלוחות וספר התורה שכתב משה רבינו היו כתובים בכתב אשורי ולא בכתב עברי[7]:

ולהזכיר מה שזכרו כבר המפרשים המחוכמים המפורסמים, דכו"ע לא פליגי בכתב הלוחות וס"ת שכתב משה ושם בארון שהוא היה בכתב המאושר, ודאי ולא נשתנה כל עיקר, כי מכתב אלקים הוא, וכל קוץ ותג שבו רומזים לסודות עליונים, ולא קבלוהו ישראל מעם אשור חלילה (אפילו למ"ד שעלה עמהם מאשור), אלא בארץ אשור חזרו ויסדוהו אחר ששכחוהו, וזה מפני שלפי אותו הדעת לא נמסר הכתב ההוא לישראל לכתוב כלל, גם לא ס"ת שלהם שמצוה על כל אחד מישראל לכתוב לעצמו, ואפילו של בתי כנסיות שקורין בו בעשרה לא ניתן לכותבו בו, מפני רוב קדושתו הסתירוהו והעלימוהו מעין כל אדם בתחלה כשנתנה תורה לישראל לצורך למודם, אלא היו מעתיקים התורה לרבים בכתב עבר הנהר שהוא הכתב ההמוני לעברים, ולא נכתבה התורה אשורית רק בס"ת שנצטווה מרע"ה לשומו בצד ברית ה', וכן היו הלוחות כתובים באותו כתב המאושר האלה למען לא ילמדוהו להשתמש בו לדברי חול. עד שבא עזרא ושינה הכתב לענין כתיבת ס"ת מעשה, והתקין לכתוב כל ס"ת בכתב קודש מן אז והלאה שעלו מאשור ונתעלו בפרישות.

וכן כתב רבי ראובן מרגליות בספרו המקרא והמסורה (אות ט הערה 7), שרק ספרי התורה שכתב משה רבנו ומסרם לשבטים היו כתובים בכתב אשורי. ולכן מדייק מר זוטרא "בתחילה ניתנה תורה לישראל", היינו מה שניתן לישראל להגות בו, היה כתוב בעברית ולא באשורית. וראה במהר"ל בתפארת ישראל (פרק טד) שחילק בין הלוחות שהיו כתובים אשורית, ובין ספרי התורה שהיו כתובים בכתב עברי[8]. וכיצא בזה כבר כתב הריטב"א במגילה (וידון להלן).

שינויים נוספים במסירת התורה

ההסבר הפשוט לכך שעזרא שינה את הכתב הוא שרצה להרחיק את עם ישראל מן הכותמים שהשתמשו בכתב עברי, כפי שכתובים ספרי התורה של השומרונים גם כיום. הסבר זה רמוז בגמרא האומרת שהניחו את הכתב העברי לכותמים. אך כדי להסביר גם את ההשוואה שעשתה הגמ' בין נתינת התורה ע"י משה לבין שינוי הכתב ע"י עזרא, יש לעמוד על שינויים נוספים שנוצרו במשך השנים באופן נתינת התורה.

השינוי הראשון הוא במוסרי התורה. בדברים פרשת שופטים (פרק יז פס' ח-ט) נאמר:

כִּי יִפְּלֹא מִמֶּךָ דְּבַר לְמִשְׁפָּט בֵּין דָּם לְדָם בֵּין דִּין לְדִין וּבֵין נָגַע לְנָגַע דְּבַר רִיבֹת בִּשְׁעָרֶיךָ וְקִמַּת וְעִלִּית אֶל הַמָּקוֹם אֲשֶׁר יִבְחַר ד' אֱלֹהֶיךָ בּוֹ: וּבָאתָ אֶל הַכֹּהֲנִים הַלְוִיִּם וְאָל הַשֹּׁפֵט אֲשֶׁר יִהְיֶה בַּיָּמִים הָהֵם וְדִרְשָׁתָּ וְהִגִּידוּ לְךָ אֶת דְּבַר הַמִּשְׁפָּט:

ובפרשת זקן ממרא כתוב (שם פסוק יב):
וְהָאִישׁ אֲשֶׁר יַעֲשֶׂה בְּזִדּוֹן לְבָלְתִי שֵׁם עַל הַכֹּהֵן הַעֹמֵד לְשָׁרֵת שֵׁם אֶת ד' אֱלֹהֵיךָ אוֹ אֶל הַשֹּׁפֵט וּמֵת הָאִישׁ הַהוּא וּבְעֶרְתָּ הָרָע מִיִּשְׂרָאֵל:

ובדברים בפרשת וילך (פרק לא פס' ט):

וַיִּכְתֹּב מֹשֶׁה אֶת הַתּוֹרָה הַזֹּאת וַיִּתְּנָהּ אֶל הַכֹּהֲנִים בְּנֵי לֵוִי הַנְּשָׂאִים אֶת אֲרוֹן בְּרִית ד' וְאֶל כָּל זִקְנֵי יִשְׂרָאֵל:

בפסוקים אלו מבואר שמורי ההוראה הם הכהנים והלוויים. באיזו תקופה בתולדות עם ישראל מורי ההלכה היו דווקא הכהנים והלוויים? אמנם הגמרא ביומא דף כו, א אומרת:

אמר רבא, לא משכחת צורבא מרבנן דמורי אלא דאתי משבט לוי או משבט יששכר, לוי דכתיב יורו משפטיך ליעקב, יששכר דכתיב ומבני יששכר יודעי בינה לעתים לדעת מה יעשה ישראל. ואימא יהודה נמי דכתיב יהודה מחקקי, אסוקי שמעתא אליבא דהילכתא קאמינא.

אך אדרבה הדברים קשים: מתי בפועל היה בעם ישראל תפקיד ההוראה מסור לכהנים? ועי' בהקדמת השאלות לנצי"ב שהסביר את המיוחד בהוראת כהנים ולויים, ששיקול דעתם מכריע בסייעתא דשמיא להלכה אבל אין הלכה נקבעת כך לדורות, לעומת זה קביעת ההלכה על ידי שבט יהודה שנאמר בו: "ומחוקק מבין רגליו" שאצלו קביעת ההלכה היתה על ידי עמל בפלפול וחקירה עד שהוציא לאור את הדינים מחותכים וקבועים[9]. ודבר זה טעון הסבר, האמנם היתה בעם ישראל תקופה כזו שהשאלות היו מופנות לכהנים דווקא? ואם לא היתה תקופה כזו, מה משמעות כוונת התורה שזו הדרך היותר רצויה?

כתיבת התורה שבעל פה

עוד יש לברר מה הטעם שאסור היה לכתוב את התורה שבעל פה, ומה הטעם שרבי יהודה הנשיא כתב את התורה שבעל פה. ההסבר המקובל הוא כפי שכתב בעל העיקרים (מאמר שלישי פרק כג) בטעם שני שהביא: לפי שאי אפשר שתהיה תורת הש"י שלמה באופן שתספיק בכל הזמנים, לפי שהפרטים המתחדשים תמיד בענייני האנשים כמשפטים והדברים הנפעלים הם רבים מאד משיכללם ספר. על כן נתנו למשה בסיני על פה דברים כוללים נרמזו בתורה בקצרה, כדי שעל ידם יוצאו החכמים שבכל דור ודור הפרטים המתחדשים, והם הדברים שנזכרו בתורת כהנים בתחילתו באותה ברייתא המתחלת ר' ישמעאל אומר בשלוש עשרה מדות התורה נדרשת מקל וחומר ומגזרה שוה וכו'. וע"י אותן הדרכים או אחד מהן יודע כל מה שלא נמצא בתורה בפירוש. אבל מה שנמצא בתורה בפירוש או בקבלה, אין היוצא באותן הדרכים מועיל ולא מעלה ולא מוריד לבטל הכתוב או הקבלה.

דבריו מוסברים על פי מה שכתוב במסכת סופרים טז, ה ובירושלמי סנהדרין פ"ד ה"ב: "אילו נתנה תורה חתוכה לא היתה לרגל עמידה", היינו שאם הכל היה כתוב בתורה לא היינו יכולים לתחדש במשך הדורות דבר, ובוודאי שהיום, כשלושת אלפים שנה לאחר שניתנה התורה, לא היה ניתן לקיים את התורה משום שלא כל מצב מתחדש יכול להיות כתוב בתורה. ולכן התורה ניתנה בעל פה, כדי לתת כח לחכמים לחדש דברים.

אלא שהרמב"ם (מורה הנבוכים ח"א פ"א) כתב טעם אחר לכתיבת התורה: ... 'דברים שאמרתי לך על פה אי אתה רשאי לאמרם בכתב' - והיה זה תכלית החכמה בתורה, לפי שהיתה הרחקה ממה שאירע בה בסופו של דבר, כלומר ריבוי הסברות והסתעפות השיטות, ומשפטים בלתי ברורים שיארעו בהסברת המחבר ושכחה שתארע לו, ויתחדשו מחלוקות בין בני אדם ונעשים כיתות, ונבוכים במעשה. אבל נמסר הדבר בכל לבית דין הגדול.

כלומר, התורה שבעל פה לא נכתבה כדי למעט במחלוקת. אך לכאורה סברתו לא מובנת, שהרי דווקא דברים שכתובים אין בהם מחלוקת, אבל בדברים שבעל פה יש מקום להרבה מחלוקות שהרי אין נוסח מוסכם באותה הלכה!

כתיבת התושבע"פ כגורם להבנות משתנות

אלא שדוקא כיום, בזמן שהפוסטמודרניזם הוא "תעלא בעידניה", ניתן להבין יותר טוב את דברי הרמב"ם. כיום אני עדים שדווקא דברים כתובים נתונים לפרשנויות שונות, והמדע כמו הספרות והאומנות נחשב בעיני רבים כמין טקסט שכל קורא רשאי לפרש לעצמו על ידי דקונסטרוקציה (שבירת הטקסט ובנייתו מחדש) לפי רצונו. דוקא בתורה שבעל פה אין מקום למחלוקות וכן כתב בהלכות ממרים (פרק א הלכה ד):

כשהיה בית דין הגדול קיים לא היתה מחלוקת בישראל, אלא כל דין שנולד בו ספק לאחד מישראל שואל לבית דין שבעירו, אם ידעו אמרו לו, אם לאו הרי השואל עם אותו בית דין או עם שלוחיו עולין לירושלים ושואלין לבית דין שבהר הבית, אם ידעו אמרו לו, אם לאו הכל באין לבית דין שעל פתח העזרה, אם ידעו אמרו להן, ואם לאו הכל באין ללשכת הגזית לבית דין הגדול ושואלין, אם היה הדבר שנולד בו הספק לכל ידוע אצל בית דין הגדול בין מפי הקבלה בין מפי המדה שדנו בה אומרים מיד, אם לא היה הדבר ברור אצל בית דין הגדול דנין בו בשעתו ונושאים ונותנים בדבר עד שיסכימו כולן או יעמדו למנין וילכו אחר הרוב ויאמרו לכל השואלים כך הלכה, והולכין להן. משבטל בית דין הגדול רבתה מחלוקת בישראל, זה מטמא ונותן טעם לדבריו וזה מטהר ונותן טעם לדבריו זה אוסר וזה מתיר.

דווקא העובדה שדברים נכתבו היא מקור למחלוקות, משום שעתה הספר פתוח בפני כל אחד לפסוק ולפרש על פי הבנתו. ה"מחיר" של כתיבת תורה שבעל פה הוא באופן אבסורדי דווקא הרחבת המחלוקות.

דברים אלו מזכירים גם הבדל מהותי שבין לימוד הגמרא בישיבות ללימוד התלמוד באקדמיה. הלימוד האקדמי של התלמוד מתאפיין גם בכך שהחוקרים מנסים להגיע למשמעות ה'מקורית' של מימרות החכמים, ובודקים איש לפי יכולתו וידיעותיו את משמעות הדברים שנכתבו ע"י חז"ל על פי הבנת הרקע התרבותי והחברתי שבו הדברים נאמרו [10]. לעומת זה בלימוד הישיבתי אנו לומדים את הכתוב לפי הבנתנו היום על פי העקרונות העולים מתוך הסוגיה, וממעטים לעסוק ברקע של הדברים בזמן שנאמרו, ודאי לא לשם הסקת מסקנות [11]. כאמור - זוהי דוקא הגישה היותר מודרנית כיום. כל זה כמובן לא מתוך גישה פוסטמודרניסטית (ולמהות גישה זו, הטוענת שאין אמת אובייקטיבית ולכל אחד האמת שלו, אין חלק ונחלה בקהל ישראל). מה גם שאופן לימוד זה של התורה אינו שייך רק לתקופה המודרנית. באופן מפתיע, אכן הלימוד בישיבות הוא הגישה המקובלת היום בענפים שונים במדע, ודווקא מי שבקיא בשפה המשפטית היום לא יתקשה להבין את צורת הלימוד הישיבתי. יתר על כן: אפילו הלכות קשות ברמב"ם מוסברות כפי שאנו מבינים אותן, אפילו אם ניתן לשער שההסבר אינו מתאים להלך מחשבתו של הרמב"ם עצמו [12]. ואולי זה עומק הפירוש של "לא בשמים היא", כפי שמסביר קצות החושן בהקדמתו. ואכן בענין תנורו של עכנאי ההלכה נפסקה כביכול שלא כדעתו של הקב"ה, "לא ככוונת המחוקק", אלא כפי שחז"ל הבינו. ואכמ"ל.

כיוצא בזה מובא בהקדמת פאת השלחן מתלמידו של הגר"א ר' ישראל משקלוב, על הגר"א: והיה יודע כל חסורי מחסרה שבתלמוד בשיטותיו דלא חסרה כלל בסדר שסידר רבינו הקדוש המתניתין, ולא אורחא שחיסר דבר, רק דרבי ס"ל כחד תנא דאליביה סתמה ולא חסר כלל אליביה, וגמרא ס"ל כדאיך תנא, ואליביה קאמרה הגמרא חסורי מחסרי וה"ק. והיה דורש על הפסוק חמוקי יריכך, [חמוקי] ר"ל ר"ת חסורי מחסרי וה"ק, יריכך מה ירך בסתר אף ד"ת בסתר, שנסתרים גדולת דרכי התורה שבעל פה [13].

הרי שכיוון שהמחייב למעשה הוא המשנה ולשונה, ניתן לפרשה אף באופן שהוא בדוחק מתאים ללשון המשנה, כיון שההלכה למעשה צריכה להיות כדעת האמוראים. יסוד הסמכות של המשנה, הגמרא וההלכה היא קבלת כלל האומה את הדברים כפי שנכתבו, כדברי הכסף משנה (הלכות ממרים ב, א) שלא פליגי אמוראי אתנאי משום: שמיום חתימת המשנה קיימו וקבלו שדורות האחרונים לא יחלקו על הראשונים, וכן עשו גם בחתימת הגמרא שמיום שנחתמה לא ניתן רשות לשום אדם לחלוק עליה [14].

שינוי הכתב ע"י עזרא – כמסירת התורה מחדש

לענין השינוי שעשה עזרא בכתב, כתב המשך חכמה (דברים פרק לא פסוק ט):

מצאנו בעזרא ששינה הכתב, והוא כי באמת יאות לפי משפטי התורה אשר התורה תהא מסורה ביד הכהנים הלויים והזקנים אשר יש בהם כל מכמני השלמות, והפרושים היושבים בירושלים, וכל מי שנדבו לבו להתקרב אל התורה יבא לירושלים, כמו שמצאנו בר"א בן הורקנוס (אבות דר"נ ו, ג), והיו הישיבות הגדולות אשר נקבצו כל הראוי בהם לפי חכמת בינתם, וכן מצאנו בספרי (ילקוט ראה תתצז) על קרא דלמען תלמד ליראה את ד', ומפני זה היה התורה כתובה בכתב עברי למען לא ילמד מי שאינו ראוי ויהיה כזורק אבן למרקוליס, ולא ירהב הנער בזקן לאמר גם אנכי הוראה ויודע סתרי החכמה כמוך. אמנם עזרא ראה בזמנו, לפי פזור ישראל בעמים והשכח מאתם עקרי התורה ונסתם החזון ובטלו הרואים באספקלריא המאירה, יותר נאות לכותבה בלשון מובן לכל הרוצה לדעת, וחכמות בחוץ תרונה, ומוטב להגיע אל המטרה הנאותה להרחיב הדעת בארץ [כאשר באמת נתפשטה עד מאד התורה בזמן בית שני, כידוע] ולסבול ההיזק המגיע אשר כבר הגיע מזה בבית שני כידוע מתלמידים שלא שמשו כל צרכן (סוטה מז סע"ב), וזה שפט ברוח הקודש, רוח אלדי אשר הופיע עליו ממרום, והפליגו חז"ל זה עד כי אמרו ראוי היה עזרא להנתן תורה על ידו כמו ע"י משה...

על פי דבריו ניתן להסביר את הגמרא בנדרים לח, א:

אמר רבי יוסי בר' חנינא, לא ניתנה תורה אלא למשה ולזרעו, שנאמר כתב לך, פסל לך, מה פסולתן שלך אף כתבן שלך. משה נהג בה טובת עין ונתנה לישראל, ועליו הכתוב אומר טוב עין הוא יבורך וגו'.

ומסקנת הגמרא שהכוונה שמה שניתן למשה אינו כל התורה אלא "פלפולא בעלמא". ופירש הר"ן: "פלפולא בעלמא ניתן לו למשה, והוא נהג בו טובת עין לישראל". את ההוה-אמינא של הגמרא שהתורה ניתנה רק למשה ולזרעו יש להבין על פי מה שכתב המשך חכמה: "כי באמת יאות לפי משפטי התורה אשר התורה תהא מסורה ביד הכהנים הלויים והזקנים אשר יש בהם כל מכמני השלמות", ולמסקנה הפלפול, דהיינו היכולת להסיק אליבא דהלכתא תוך כדי משא ומתן של הלכה בסוגיות, מעיקר הכוונה היה מיועד רק למשה ולזרעו.

אך נראה שקשה לומר כחידושו של המשך חכמה שהתורה היתה כתובה דוקא באופן שלא יבינו, שהרי מצות תלמוד תורה כוללת גם את לימוד התורה שבכתב, ולא רק תורה שבעל פה. ולכן יש לומר על פי הריטב"א במגילה (ב, ב) שהכתב שבלוחות ודאי היה אשורית והוסיף:

לשון הקודש כבר נודע לאבות ובני ישראל קודם מתן תורה, ובו ה' מדבר עם נביאיו וקדושו, ואעפ"כ מתוך תומת וקדושת הכתב ההוא באותן הימים לא היו כותבין אותו אפילו בספרים שכותב המלך או כל אחד ואחד לעצמו אלא היו כותבין אותו בכתב עברי, וזהו שכשנגזר הארון שכחום לאותיות מנצפ"ך, וכשגלו לאשור וידעו בני אשור כתב זה נטלוהו להם, או שהיה אצלם קודם לכן שנודע להם מספרי הקודש מלבד כתב שלהם, או שהיה להם וחמדו אותו, ובני ישראל הורגלו בו עמהם משם ואילך, וזהו שעלה מאשור, ובימי עזרא ניתן להם לכתוב ס"ת ושאר כתובים וכו'.

ומכיוון שבסוף גלות בבל העם עבר לכתוב בכתב אשורי, שינה עזרא את הכתב כדי שכולם יחזרו להבין את ספר התורה. כיון שהורגלו בכתב אשורי, כבר לא היו יודעים לקרוא בכתב עברי כפי שאנו לא יודעים לקרוא בו. ואף שהיה להם תרגום, מכל מקום לא יכלו ללמוד תורה שבעל פה על פי תרגום. ובא עזרא ותיקן שגם את ספרי התורה יכתבו כולם בכתב אשורי כדי שכולם יוכלו לקרוא אותם, וכמ"ש הריטב"א: "ובימי עזרא ניתן להם לכתוב ס"ת ושאר כתובים וכדדייקין מדכתיב וכתב הנשתן". לכן "ראוי היה עזרא שתינתן תורה על ידו אלמלא קדמו משה", משום ששינוי הכתב גרם להפצת התורה. אם נדייק בגמרא בסנהדרין, הרי ההשוואה בין עזרא למשה רבנו היא להוראת התורה: "במשה הוא אומר ואני צוה ה' בעת ההיא ללמד אתכם חקים ומשפטים, בעזרא הוא אומר כי עזרא הכין לבבו לדרש את תורת ה' ולעשת וללמד בישראל חק ומשפט". שינוי הכתב הוא מבחינה מסוימת נתינת תורה מחודשת, כשעל ידו חזרה התורה להיות נלמדת ע"י כל ישראל.

סיכום

"נתינת התורה" על ידי עזרא הסופר היתה הרחבת ידיעת התורה להמון על ידי שינוי כתב התורה לכתב אשורי שבו כבר הורגלו ישראל, בדומה למה שעשה רבינו הקדוש כשכתב את התורה שבעל פה ובכך גרם להפצת התורה ולשמירתה. להנחלת התורה להמון היה "מחיר" גם אצל עזרא וגם אצל רבי יהודה הנשיא: לימוד התורה הכללי גרם להתחזקות הצדוקים שהחלו לדרוש את פשטי המקראות, ולאחר שנכתבה תורה שבעל פה נתרבו המחלוקות; ואף על פי כן זה עדיף על פני צמצום ידיעת התורה [15]. ולכן מובנת ההשוואה בין משה רבינו לעזרא הסופר: "ראוי היה עזרא שתינתן תורה על ידו לישראל... ואף על פי שלא ניתנה תורה על ידו נשתנה על ידו הכתב".

וכן כתב הפייט [16]:

אז בכתב אשורית / ובלשון עברית / ובדיבור מצרית [17] / הנחלת לבת עברית.

[1] וידועים דבריו של הרמב"ן בסוף פירוש התורה: 'ברכני השם עד כה שזכיתי ובאתי לעכו ומצאתי שם ביד זקני הארץ מטבע כסף מפותח פתוחי חותם, מצדו האחד כעין מקל שקד ומצדו השני כעין צלוחית, ובשני הצדדים סביב כתב מפותח באר היטב. והראו הכתב לכותיים וקראוהו מיד, כי הוא כתב עברי אשר נשאר לכותיים כמו שמזכר בסנהדרין'. וכבר הוכיחו שהכוונה למטבע שקל מימי מרד בר כוכבא, כמוהו נמצאו רבים בארץ.

[2] וכתב רש"י שם: רמז לנו משה רבינו שכתב שבימיו עתיד להשתנות מן עברי לאשורית שנתן להם בימי דניאל, ובא עזרא וכתב בו את התורה בכתב אשורית.

[3] וראה גם תוספתא סנהדרין פרק ד הלכה ז; אסתר רבה פרשה ד, יב.

[4] מהד' בלאו סי' רסח. ועי' מ"ש הרב אוריאל פרנק במאמרו 'דעת הרמב"ם על קדושת הלשון והכתב', המעין תשרי תשס"ז (כרך מז גליון א) עמ' 75 ואילך.

[5] להבדיל בין קודש לחול: ידועים לנו כתבים שהשתמשו בהם רק לדברי דת, כגון הכתב הוודי סנסקריט שהוא בן כארבעת אלפים שנה, וכן הכתב שבו כתובה התורה אצל האתיופים, כתב הגז.

[6] עי' רש"י כב ע"א ד"ה וכתב הנשתון שעד אותו היום הכתב לא היה ידוע גם לא ליהודים, ולכן לא ידעו לקרא את הכתובת מנא מנא תקל ופרסין.

[7] בית מדות עליית הכתיבה עמ' 305. וכתב הרמב"ם בהקדמת המשניות: 'ולפני מותו נתעסק בכתיבה, וכתב שלושה

עשר ספרי תורה כולם גוילים מן ב"ת בראשית עד למ"ד ישראל, ונתן ספר לכל שבט שיתנהג על פיו, והשלושה עשר נתנו ללוים ואמר להם לקוח את ספר התורה הזה וכו'. ובגמרא בבא בתרא יד, א משמע שהוא ספר התורה שמנחם בארון, וברש"י כתב שזהו הספר שכתב משה רבנו. ובתוספות שם ד"ה 'שלא יהא' כתבו שמשחרב משכן שילה עד שבנה שלמה בית המקדש היו יכולין להוציאו מן הארון ולעיין בו.

[8] עי' שו"ת הרדב"ז ח"ג סימן תמב, ובשו"ת משפט כהן סימן סט בסופו. לסיכום כל השיטות בהסבר הגמרא בסנהדרין ראה מ"ש רמ"מ כשר בספר 'כתב התורה ואותיותיה' פרקים א-ה, וע' ר"א קורמן בספרו 'התורה וכתבה'.

[9] קדמת העמק פרק א אות ד. וראה מ"ש הראי"ה קוק בהקדמת עין איה, ובספר מאמרי הראיה עמ' 210.

[10] שיטה זו היתה קיימת בעבר במערכת המשפט החילונית: כשהייתה לאקונה בחוק, אחת הדרכים להבנת החוק היתה לנסות לבדוק את כוונת המחוקק ולעיין במבוא לחוק ובדברים שנאמרו בכנסת לקראת קבלתו, כדי להשלים את החסר. כיום דעתם של משפטים רבים שפירוש החוק הוא כפי שאנו קוראים אותו היום, ובתנאי שהפרשנות החדשה לא תסתור את מה שכתוב בחוק במפורש: 'חוק יפורש על פי תכליתו... תכלית זו הינה הן התכלית הסובייקטיבית, כלומר כוונתו הריאלית של המחוקק, הן התכלית האובייקטיבית, כלומר כוונתו ההיפותטית של המחוקק המשקפת את המציאות הדינמית. היחס בין שתי תכליות אלה אינו קבוע. כאשר חל שינוי חברתי ניכר בין מועד החקיקה לבין מועד הפרשנות, או כאשר חל שינוי במבנה הפוליטי, יש להעדיף את התכלית האובייקטיבית על פני הסובייקטיבית. במצבים אלה השאלה שוב אינה מה רצה המחוקק (סובייקטיבית) להשיג, אלא מה ניתן (אובייקטיבית) להגשים באמצעות לשונו בהתחשב במציאות (העובדתית והערכית) החדשה בעת הפירוש. גישה זו נוקט בית המשפט העליון מאז ומתמיד (מתוך אהרון ברק, "את המשפט של העם יש ללמוד באספקלריה של מערכת החיים הלאומיים שלו", עלי משפט ג תשס"ד עמ' 386).

כשגישה כזו מצטרפת להשקפה ש"מלוא כל הארץ משפט" (א' ברק, "על השקפת עולם בדבר משפט ושיפוט ואקטיביזם שיפוטי", עיוני משפט יז תשנ"ב ע' 475, 477) - היא מקוממת. גם בייחס לספרות כיום אין מנסים לפרש את הכתוב לפי דעתו של הסופר - אלא לפי הבנת הקורא, שיטה שתיאר פרופ' לחובר בלשון זו: 'היצירה לאחר שבאה לעולם, טוענים הם, היא כוולד שנולד, ואין כל חיבור וקשר בינו ובין חבלי הלידה ותנאי הלידה וההולדה שלו, ועובר שכבר בא לעולם לא ירך אמו הוא' (עי' במ"ש פרופ' דב לנדאו, "דרכי חשיבה מודרניים כעקרונות פרשניים", אתר "דעת"). קיים תחום בפילוסופיה שנקרא 'הפילוסופיה של הלשון' החוקר את משמעות המילה והשפה, ואפילו בתרגום משפה לשפה קיימת תיאוריה שיש לתרגם ספרות לפי הבנת המתרגם, ולא לפי כוונתו המקורית של הסופר (ראה רחל ויסבורד, לא על המילה לבדה, סוגיות יסוד בתרגום, עמ' 182-183).

[11] פירשה נפרדת היא העובדה שבלמוד הישיבתי כמעט שלא עוסקים בשינוי נוסחאות ובחידושי ההלכה הנובעים מהם. יתכן שהסיבה, כפי שכתב החזון איש, שלא יתכנו גרסאות חדשות "כי כבר נתגלתה כל התורה. ועיין חגיגה ג' ב' שמא יאמר אדם היאך אני לומד תורה מעתה כו', וזה קאי גם על הראשונים וגם על הגרסאות" (קובץ אגרות החזון איש חלק ג אגרת ב. שיטתו נותחה על ידי פרופ' יעקב ש' שפיגל, עמודים בתולדות הספר העברי - הגהות ומגיהים, עמ' 566 ואילך). ועי' בהערה הבאה.

[12] וראה במכתבו של הגאון הרב יחיאל יעקב ווינברג זצ"ל לרב יהושע הוטנר שליט"א שנדפס ב"המעין" ניסן תשס"ז [מז, ג] עמ' 4: 'בשעתו אמרתי לגר"מ סולובייצ'י ז"ל, בנו של מרן הגר"ח ז"ל, כי חידושי אביו הגאון ז"ל הם אמיתיים מבחינת המחשבה ההגיונית, אבל אין הם אמיתיים מבחינה הסתורית. להרמב"ם ז"ל היתה דרך לימוד ומחשבה אחרת לגמרי. הבאתי ראיות חותכות, שבתשובות הרמב"ם לא נמצא אף דבר אחד הדומה במהותו לחידושי הגר"ח ז"ל. הרמב"ם מתרץ את עצמו באופן אחר לגמרי. הוא אומר: לי גרסא אחרת, פירוש אחר. או טעות המעתיק או הכורך וכו'. וגם: טעיתי ושכחתי... אבל אין לקפח שכרו של הגר"ח חלילה, בו קם לנו רמב"ם חדש שהינהו פאר למחשבה התורנית'. לאור דברים אלו יש צורך להסביר את גדר הסמכות והמחויבות של ההלכה המתפרשת באופנים אלו. יתכן שהסמכות נובעת מקבלת הציבור, כפי לשונו של הרב קוק ב"אדר היקר" עמ' לו: "כל מצוות חכמים שאנו מקיימים היסוד עיקרי שלהן היא קבלת 'הגוי כולו'... ואע"ג דאסמכנהו רבנן על לא תסור - מ"מ היסוד הברור הוא קבלת האומה כמפורסם, משום דאיכא 'הגוי כולו' דוקא, היינו שנתפשט הדבר ברוב ישראל". וביתר אריכות כתב על כך הראי"ה בבאר אליהו חו"מ סימן כה (דבריו שם נעלמו מרבים שעסקו בסוגיה זו): "עכ"פ מתוך התפשטות של איזה הלכה או איזה ספר בישראל להוראה, אע"פ שבעיקר הדבר אין כאן תקנה, מ"מ ההתפשטות דינה כתקנה, ומשו"ה שייכי בההתפשטות ברוב ישראל כל אותן הדינים שנאמרו בתקנות". ועי' כסף משנה הלכות ממרים פרק ב הלכה א, וע' מ"ש פרופ' רש"ז הבלין במאמרו 'החתימה הספרותית' (מחקרים בספרות התלמודית ירושלים תשמ"ג), ומ"ש הגר"ש פיישר בבית ישי חלק הדרשות סימן טו "בענין קבלת הרבים". גישת זו יכולה להסביר את המחויבות ההלכתית גם לדברים שמתחדשים, אך עלולה להוביל למסקנות מסוכנות ומרחיקות לכת כתוצאה מהשקפה של התפתחות ההלכה (למשל ראה דיון בכיצא בזה בספרה של פרופ' תמר רוס "ארמון התורה ממעל לה" עמ' 357: 'אם ציבור המאמינים וגופיו הסמכותיים יצליחו למצוא תמיכה אמיתית, לפי הכרתם, להשקפות העולם שלהם, בקריאה חדשה של התורה הקיימת - נוכל להיות סמוכים ובטוחים שווירטואוזיות פרשנית כזו היא בבואה נאמנה של רצון הא-ל. המבחן האולטימטיבי לתקפותה של פרשנות חדשה הוא התקבלותה על ידי הקהילה הפרשנית. עבור המאמין, אם רעיון או דפוס חברתי כלשהו, יהא מקורו אשר יהא, מקבל

אחיזה בחייהם של היהודים המחויבים לתורה - הרי זה סימן לכך שהוא נובע מה' ואמור היה להתקבל על דעתם". את גישתה היא מכנה "התגלות מצטברת", ותולה אותה בין השאר ברב קוק. אך על כגון אלו כתב הרב קוק באגרותיו [חלק א אגרת צ עמ' קג]: 'אמרת שלפי דברי התורה הולכת ומתפתחת. וח"ו לא אמרתי מעולם דבר זר כזה. מושג ההתפתחות, שרגיל העם לייחש, הוא מאורע של פנים חדשות, המביא קלות ראש... אבל מי שבא לדון בזמן הזה... ע"פ אותן הדרישות הרוממות - הוא נכון למועדי רגל, ורחמנא ליצול מהאי דעתא'...

[13] על שיטת הגר"א בזה עי' מ"ש הגר"א באדרת אליהו ר"פ משפטים, ודן בדבר בבית ישי, דרשות, סימן טו הערה ו.

[14] ראה לעיל הערה 13.

[15] ובדומה לזה מחלוקת רבן גמליאל עם רבי אלעזר בן עזריה באותו יום שנתמנה רבי אלעזר בן עזריה (ברכות כח, א), שבעקבותיה גדלה מאוד כמות הלומדים בבית המדרש.

[16] פתיחה לקרובה של שחרית ביום ראשון של שבועות מאת ר' אלעזר ברבי קליר (מחזור לשבועות מהדורת גולדשמידט עמ' 188).

[17] פסיקתא דרב כהנא בחודש השלישי כב: 'א"ר נחמיה, מהו אנכי, לשון מצרי הוא. למה הדבר דומה, למלך בשר ודם שנשבה בנו ועשה ימים הרבה אצל השבויין, לבש נקמה אביו והלך אצלו והביאו, ובא להשיח עמו בלשון של שבויין. כך הקב"ה, עשו ישראל במצרים כל אותן השנים ולמדו שיחתן של מצרים, כשגאלן הקב"ה ובא ליתן להם את התורה ולא היו יודעים לשמוע אמר הקב"ה הרי אני משיח להם בלשון מצרי. אמר הקב"ה אנכי, אנוך, כך פתח להם הקב"ה בלשונם, אנכי ה' אלוהיך'.